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No. 93-880

IN THE
Supreme Court of the United States

OCTOBER TERM, 1993

JUDY MADSEN, ED MARTIN, and SHIRLEY HOBBS,
Petitioners,

v.

WOMEN'S HEALTH CENTER, INC.,
AWARE WOMAN CENTER FOR CHOICE, INC.,
EPOC CLINIC, INC., and CENTRAL FLORIDA
WOMEN'S HEALTH ORGANIZATION, INC.,
Respondents.

On Writ of Certiorari to the
Supreme Court of Florida

BRIEF FOR PETITIONERS

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QUESTIONS PRESENTED FOR REVIEW

1. Whether a state court injunction placing a thirty-six foot buffer zone around an abortion clinic which prohibits peaceful pro-life speech in a traditional public forum is an unconstitutional content-based restriction on free speech and association.
2. Whether a state court injunction creating a consent requirement before speech is permitted within a three-hundred foot buffer zone around an abortion clinic and residential areas is a reasonable time, place, and manner restriction or an unconstitutional prior restraint on free speech.
3. Whether a state court injunction prohibiting named demonstrators and those acting "in concert" from expressing peaceful speech within several designated buffer zones violates the first amendment's protection of freedom of speech and association.

RULE 29.1 STATEMENT

Respondents are all incorporated in Florida and do not have parent or subsidiary companies.

TABLE OF CONTENTS

PAGE

QUESTIONS PRESENTED FOR REVIEW	i
RULE 29.1 STATEMENT	ii
TABLE OF CONTENTS	iii
TABLE OF AUTHORITIES	v
OPINIONS BELOW	2
STATEMENT OF JURISDICTION	2
CONSTITUTIONAL PROVISION AT ISSUE	2
STATEMENT OF THE CASE	3
SUMMARY OF ARGUMENT	5
ARGUMENT	8

I.

THE INJUNCTION VIOLATES PETITIONERS' RIGHT TO FREE SPEECH	8
--	---

A. The Injunction Is Content And Viewpoint- Based, Is Not Necessary To Serve A Compelling State Interest And Is Not Narrowly Drawn To Achieve That End	8
---	---

1. The Injunction is both content and viewpoint-based	9
--	---

2. The Injunction is not necessary and	
--	--

not narrowly drawn to serve a compelling state interest	14
B. The Injunction Fails The <i>O'Brien</i> And The Reasonable Time, Place, And Manner Tests	20
C. The Injunction Is Overbroad And Vague	24
1. The Injunction is overbroad	24
2. The Injunction is vague	30
D. The Injunction Creates An Unlawful Prior Restraint	37
II.	
THE INJUNCTION VIOLATES PETITIONERS' RIGHT TO FREE ASSOCIATION	44
A. The Injunction Penalizes All Persons Having A Pro-Life Viewpoint	44
B. The Injunction Eradicates Group Advocacy	48
CONCLUSION	50

TABLE OF AUTHORITIES

PAGE

CASES:

<i>Alexander v. United States</i> , 113 S.Ct. 2766 (1993)	38
<i>Baggett v. Bullitt</i> , 377 U.S. 360 (1964)	31
<i>Bantam Books, Inc. v. Sullivan</i> , 372 U.S. 58 (1963)	38
<i>Bates v. City of Little Rock</i> , 361 U.S. 516 (1960)	44
<i>Board of Airport Commissioners of Los Angeles v. Jews for Jesus</i> , 482 U.S. 569 (1987)	19, 20
<i>Boos v. Barry</i> , 485 U.S. 312 (1988)	12, 14-16, 18, 19, 30
<i>Bose Corp. v. Consumers United of United States, Inc.</i> , 466 U.S. 485 (1984)	10
<i>Brandenburg v. Ohio</i> , 395 U.S. 444 (1969)	44, 45, 48
<i>Bray v. Alexandria Women's Health Clinic</i> , 113 S.Ct. 753 (1993)	16
<i>Broadrick v. Oklahoma</i> , 413 U.S. 601 (1973)	25
<i>Buckley v. Valeo</i> , 424 U.S. 1 (1976)	31, 44
<i>Burlington Northern R. Co. v. Ford</i> , 112 S.Ct. 2184 (1992)	10
<i>Burson v. Freeman</i> , 112 S.Ct. 1846 (1992)	2, 10, 15, 16, 29, 33
<i>Cantwell v. Connecticut</i> , 310 U.S. 296 (1940)	23, 25
<i>Carey v. Brown</i> , 447 U.S. 455 (1980)	47

<i>Carroll v. Presidents and Commissioners of Princess Anne</i> , 393 U.S. 175 (1968)	18, 38, 39, 43
<i>Chase National Bank v. City of Norwalk</i> , 291 U.S. 431 (1934)	28
<i>Cheffer v. McGregor</i> , 6 F.3d 705 (11th Cir. 1993)	4, 11, 13, 15-17, 25, 32, 39, 47
<i>Citizens Against Rent Control v. Berkeley</i> , 454 U.S. 290 (1981)	44, 48
<i>City of Cincinnati v. Discovery Network, Inc.</i> , 113 S.Ct. 1505 (1993)	14
<i>City of Houston v. Hill</i> , 482 U.S. 451 (1987)	18
<i>City of Prairie Village v. Hogan</i> , 253 Kan. 423, 855 P.2d 949 (1993)	19
<i>Clark v. Community for Creative Non-Violence</i> , 468 U.S. 288 (1984)	21
<i>Coates v. City of Cincinnati</i> , 402 U.S. 611 (1971)	2, 31, 34
<i>Communist Party v. Subversive Activities Control Board</i> , 367 U.S. 1 (1961)	46
<i>Connally v. General Construction Co.</i> , 269 U.S. 385 (1926)	31
<i>Cox v. Louisiana</i> , 379 U.S. 536 (1965)	10, 21
<i>De Jonge v. Oregon</i> , 299 U.S. 353 (1937)	44, 46, 47
<i>Demetree v. State</i> , 89 So. 2d 498 (Fla. 1956)	47
<i>Edwards v. South Carolina</i> , 372 U.S. 229 (1963)	11

<i>Erznoznik v. City of Jacksonville</i> , 422 U.S. 205 (1975)	24, 28, 37
<i>FCC v. Pacifica Foundation</i> , 438 U.S. 726 (1978)	36, 42
<i>Forsyth County v. The Nationalist Movement</i> , 112 S.Ct. 2395 (1992)	9, 10, 12, 29, 42, 43
<i>Freedman v. Maryland</i> , 380 U.S. 51 (1965)	38
<i>Frisby v. Schultz</i> , 487 U.S. 474 (1988)	8, 18, 19, 21-24
<i>Gilmore v. City of Montgomery</i> , 417 U.S. 566 (1974)	44
<i>Gooding v. Wilson</i> , 405 U.S. 518 (1972)	34
<i>Grayned v. City of Rockford</i> , 408 U.S. 104 (1972)	29, 31, 33
<i>Hague v. CIO</i> , 307 U.S. 496 (1939)	25
<i>Healy v. James</i> , 408 U.S. 169 (1972)	44-46
<i>Heffron v. ISKCON</i> , 452 U.S. 640 (1981)	15, 42
<i>Howard Gault Co. v. Texas Rural Legal Aid</i> , 848 F.2d 544 (5th Cir. 1988)	19
<i>Hustler Magazine, Inc. v. Falwell</i> , 485 U.S. 46 (1988)	42
<i>Hynes v. Mayor & Council of Oradell</i> , 425 U.S. 610 (1976)	31
<i>ISKCON v. Lee</i> , 112 S.Ct. 2711 (1992)	8, 30
<i>Jamison v. Texas</i> , 318 U.S. 413 (1943)	23
<i>Kovacs v. Cooper</i> , 336 U.S. 921 (1949)	16, 23, 30

<i>Lakewood v. Plain Dealer Publishing Co.</i> , 486 U.S. 750 (1988)	10, 42
<i>Lamb's Chapel v. Center Moriches Union Free School District</i> , 113 S.Ct. 2141 (1993)	9
<i>Lanzetta v. New Jersey</i> , 306 U.S. 451 (1939)	31
<i>Leathers v. Medlock</i> , 111 S.Ct. 1438 (1991)	14
<i>Lovell v. Griffin</i> , 303 U.S. 444 (1938)	10, 38, 41, 43
<i>Machesky v. Bizzell</i> , 414 F.2d 283 (5th Cir. 1969)	27
<i>Martin v. City of Struthers</i> , 319 U.S. 141 (1943)	23, 24, 41
<i>Members of the City Council of City of Los Angeles v. Taxpayers for Vincent</i> , 466 U.S. 787 (1984)	14, 15, 23, 24, 25, 26
<i>Meyer v. Grant</i> , 486 U.S. 414 (1988)	16
<i>Mississippi Women's Medical Clinic v. McMillan</i> , 866 F.2d 788 (5th Cir. 1989)	16, 17
<i>Milk Wagon Drivers Union of Chicago, Local 753 v. Meadowmoor Dairies</i> , 312 U.S. 287 (1941)	46
<i>NAACP v. Alabama ex rel Patterson</i> , 357 U.S. 449 (1958)	49
<i>NAACP v. Button</i> , 371 U.S. 415 (1963)	29-31, 37, 44
<i>NAACP v. Claiborne Hardware Co.</i> , 458 U.S. 886 (1982)	20, 27, 29, 47, 49
<i>Near v. Minnesota</i> , 283 U.S. 697 (1931)	38
<i>Nebraska Press Association v. Stuart</i> , 427 U.S. 539 (1976)	38

<i>New York Times Co. v. Sullivan</i> , 376 U.S. 254 (1963)	9, 38
<i>Noto v. United States</i> , 367 U.S. 290 (1961)	45
<i>Operation Rescue, et al. v. Women's Health Center, Inc., et al.</i> , 626 So. 2d 664 (Fla. 1993)	2, 4
<i>Organization For A Better Austin v. Keefe</i> , 402 U.S. 415 (1971)	40, 41, 43
<i>Papachristou v. City of Jacksonville</i> , 405 U.S. 156 (1972)	2, 31
<i>Peel v. A. Horney Registration & Disciplinary Commission of Illinois</i> , 110 S.Ct. 2281 (1990)	10
<i>Perry Education Association v. Perry Local Educators' Association</i> , 460 U.S. 37 (1983)	8, 9, 22
<i>Planned Parenthood League of Massachusetts v. Operation Rescue</i> , 406 Mass. 701, 550 N.E.2d 1361 (1990)	21
<i>Planned Parenthood of Southeastern Pennsylvania v. Casey</i> , 112 S.Ct. 2791 (1992)	16
<i>Planned Parenthood Shasta-Diablo Inc. v. Williams</i> , 18 Cal. App. 4th 359, 16 Cal. Rptr. 2d, 540 (Cal. Ct. App.), rev. granted, 851 P.2d 744, 19 Cal. Rptr. 2d 492 (Cal. 1993)	15
<i>Police Department of Chicago v. Mosley</i> , 408 U.S. 92 (1972)	9
<i>Public Utilities Commission v. Pollack</i> , 343 U.S. 451 (1952)	16
<i>R.A.V. v. City of St. Paul</i> , 112 S.Ct. 2538 (1992)	9, 13, 14
<i>Regan v. Time, Inc.</i> , 468 U.S. 641 (1984)	9

<i>Roberts v. United States Jaycees</i> , 468 U.S. 609 (1984)	44
<i>Rowan v. United States Post Office Department</i> , 397 U.S. 728 (1970)	16
<i>Sabelko v. City of Phoenix</i> , No. 93-2229, slip op. (D.AZ Feb. 11, 1994)	35, 37
<i>Saia v. New York</i> , 334 U.S. 558 (1948)	25
<i>Scales v. United States</i> , 367 U.S. 203 (1961)	45, 49
<i>Schacht v. United States</i> , 398 U.S. 58 (1970)	14
<i>Schneider v. State</i> , 308 U.S. 147 (1939)	19, 23, 24, 25, 41
<i>Secretary of State of Maryland v. Joseph H. Munson Co.</i> , 467 U.S. 947 (1984)	25
<i>Shelton v. Tucker</i> , 364 U.S. 479 (1960)	18
<i>Shuttlesworth v. City of Birmingham</i> , 382 U.S. 87 (1965) (<i>Shuttlesworth I</i>)	32
<i>Shuttlesworth v. City of Birmingham</i> , 394 U.S. 147 (1969) (<i>Shuttlesworth II</i>)	43
<i>Simon & Schuster v. New York Crime Victims Board</i> , 112 S.Ct. 501 (1991)	9, 10, 14, 23
<i>Smith v. California</i> , 361 U.S. 147 (1959)	31
<i>Smith v. Goguen</i> , 415 U.S. 566 (1974)	34
<i>Southeastern Promotions, Ltd. v. Conrad</i> , 420 U.S. 526 (1975)	24, 38, 40
<i>Speiser v. Randall</i> , 357 U.S. 513 (1958)	37

<i>Spence v. State of Washington</i> , 418 U.S. 405 (1974)	21
<i>Terminiello v. Chicago</i> , 337 U.S. 1 (1949)	36
<i>Texas v. Johnson</i> , 491 U.S. 397 (1989)	12, 14, 18, 21, 36, 42
<i>Thomas v. Collins</i> , 323 U.S. 516 (1945)	36, 44
<i>Thornhill v. Alabama</i> , 310 U.S. 88 (1940)	25, 28, 35, 39, 40, 42, 43, 49
<i>Tinker v. Des Moines Independent School District</i> , 393 U.S. 503 (1969)	23, 24, 45
<i>Town of Barrington v. Blake</i> , 568 A.2d 1015 (R.I. 1990)	19
<i>United Food & Commercial Workers International Union v. IBP, Inc.</i> , 857 F.2d 422 (8th Cir. 1988)	30
<i>United Mine Workers of America v. Gibbs</i> , 383 U.S. 715 (1966)	45, 46
<i>United States v. Grace</i> , 461 U.S. 171 (1983)	22, 24, 41
<i>United States v. Kokinda</i> , 497 U.S. 720 (1990)	30
<i>United States v. O'Brien</i> , 391 U.S. 367 (1968)	20, 21
<i>United States v. Robel</i> , 389 U.S. 258 (1967)	46
<i>Vance v. Universal Amusement Co., Inc.</i> , 445 U.S. 308 (1980)	38
<i>Virginia v. American Book Sellers Association, Inc.</i> , 484 U.S. 383 (1988)	25
<i>Virginia State Board of Pharmacy v. Virginia Citizens Consumer Council, Inc.</i> , 425 U.S. 748 (1976)	10

<i>Vittitow v. City of Upper Arlington</i> , 830 F. Supp. 1077 (S.D. Ohio 1993)	19
<i>Ward v. Rock Against Racism</i> , 491 U.S. 781 (1989)	15, 16, 18, 21-23, 30
<i>Wesberry v. Sanders</i> , 376 U.S. 1 (1964)	15
<i>Whitney v. California</i> , 274 U.S. 357 (1929)	8, 10, 45
<i>Widmar v. Vincent</i> , 454 U.S. 263 (1981)	9
<i>Wygant v. Jacksonville Board of Education</i> , 476 U.S. 267 (1986)	18
<i>Yates v. United States</i> , 354 U.S. 298 (1957)	45
<i>Youngdahl v. Rainfair, Inc.</i> , 355 U.S. 131 (1957)	46
CONSTITUTIONAL AND STATUTORY PROVISIONS:	
U.S. Const. amend. I	2
28 U.S.C. 1257(a)	2
Fla. Stat. Chapter 784	17
Fla. Stat. Chapter 806	17
Fla. Stat. Chapter 810	17
Fla. Stat. § 60.06	47
Fla. Stat. § 316.130	17
Fla. Stat. § 316.2045	17

Fla. Stat. § 316.2055	17
Fla. Stat. § 784.048	17
Fla. Stat. § 836.05	17
Fla. Stat. § 836.10	17
Fla. Stat. § 837.05	17
Fla. Stat. § 838.021	17
Fla. Stat. §§ 870.041 - 870.047	17
OTHER AUTHORITIES:	
Federal Rule of Civil Procedure 65	27
Florida Rule of Civil Procedure 1.610(c)	27
Restatement (Second) of Agency § 1(1) (1984)	32

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BRIEF FOR PETITIONERS

OPINIONS BELOW

The opinion of the Florida Supreme Court is reported as *Operation Rescue, et al. v. Women's Health Center, Inc., et al.*, 626 So. 2d 664 (Fla. 1993), and is reproduced as Appendix A to the Petition for Writ of Certiorari.

The opinion of the Eighteenth Judicial Circuit of Florida granting the Amended Permanent Injunction challenged herein is not reported, but is reproduced in the Joint Appendix. J.A. 50.

STATEMENT OF JURISDICTION

The Florida Supreme Court entered its opinion on October 28, 1993. Petitioners filed their Petition for Writ of Certiorari on December 3, 1993, which this Court granted on January 21, 1994. The jurisdiction of this Court is invoked under 28 U.S.C. 1257(a).

CONSTITUTIONAL PROVISION AND INJUNCTION AT ISSUE

This case involves the first amendment¹ to the United States Constitution, which provides:

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for redress of grievances.

U.S. Const. amend. I.

This case presents constitutional challenges to the Eighteenth

¹ The fourteenth amendment is also implicated because the Injunction is vague, overbroad, and content-based. *Burson v. Freeman*, 112 S.Ct. 1846 (1992); *Papachristou v. City of Jacksonville*, 405 U.S. 156 (1972); *Coates v. City of Cincinnati*, 402 U.S. 611 (1971).

Judicial Circuit of Florida's Amended Permanent Injunction dated April 8, 1993. J.A. 50.

STATEMENT OF THE CASE

A. The Amended Permanent Injunction

Petitioners challenge the constitutionality of an Amended Permanent Injunction (hereinafter "Injunction") entered on April 8, 1993, by the Honorable Robert B. McGregor, Circuit Judge in the Eighteenth Judicial Circuit of Florida, against Operation Rescue, other pro-life groups, individuals, Petitioners, and those acting "in concert."

In this case Respondents are abortion clinics located in Central Florida. Petitioners are opposed to abortion. Certain individuals demonstrated outside the Aware Woman Center for Choice (hereinafter "Aware" or the "Clinic") expressing their opposition to abortion. Petitioners were not associated with those protesters or with Operation Rescue. Respondents requested injunctive relief enjoining Petitioners and others from trespassing, blocking, or obstructing ingress into or egress from Respondents' abortion facilities.

On July 30, 1992, the parties stipulated that Petitioners had never blocked access to the clinics. On September 30, 1992, the court entered an order granting a permanent injunction against the Petitioners and others. J.A. 5. The 1992 permanent injunction prohibits trespassing on, sitting in, blocking, impeding or obstructing ingress into or egress from any abortion clinic in Brevard and Seminole County, physically abusing persons entering, leaving, or using any services of any abortion facility. J.A. 9.

On March 22, 1993, only Aware moved for a modification of the permanent injunction. On April 8, 1993, the court entered the Amended Permanent Injunction which is the subject of this action. The 1993 Injunction incorporates the language of the 1992 permanent injunction but adds a thirty-six foot zone around the

Clinic property in which is contained a public sidewalk, right-of-way, and highway. The Injunction also adds a three-hundred foot zone around the Clinic and the residences of any employee, staff, owner, or agent of the Clinic. The Injunction further forbids singing, chanting, whistling, shouting, yelling, sounds, images observable, leafletting, congregating, picketing, patrolling, and demonstrating. It restricts speech that is intimidating, encouraging, or inciting. Non-threatening speech is permitted only with those who show a desire to communicate by approaching, inquiring or inviting contact. Speech must end when the listener expresses words that indicate a desire to end the contact, or words or actions of similar import. J.A. 56-64.

B. The Decision of the Supreme Court of Florida

On October 28, 1993, in *Operation Rescue, et al. v. Women's Health Center, Inc., et al.*, 626 So. 2d 664 (Fla. 1993), the Florida Supreme Court concluded that the Injunction encompassed a traditional public forum, was content neutral, and was a permissible time, place, and manner restriction. The court noted the Injunction could be narrowed, but declined to narrow its reach. The court rejected the prior restraint argument concluding that a prior restraint challenge was inapplicable in the absence of a content-based restriction.

Rejecting a challenge based on vagueness or overbreadth, the court stated that "sounds or images observable to or within earshot of the patients inside the Clinic" was sufficiently specific to give proper notice of what would be considered illegal. As to overbreadth, the court stated that the phrase "in active concert or participation" created no danger that the Injunction would be unfairly enforced. The court recognized *Cheffer v. McGregor*, 6 F.3d 705 (11th Cir. 1993), but without comment. Pet. App. C. The *Cheffer* case involved a person not a party to the Injunction who feared arrest because it had been applied to anyone expressing a pro-life view through the phrase "in concert." On October 20, 1993, the Eleventh Circuit Court of Appeals held the Injunction was a viewpoint-based restriction in a traditional public forum. The

court noted that a viewpoint-specific restriction in a traditional public forum is unconstitutional unless it is necessary to serve a compelling state interest and it is narrowly drawn to achieve that end. The Injunction did not meet either test. Pet. App. C.

SUMMARY OF ARGUMENT

The Injunction violates Petitioners' First and Fourteenth Amendment rights. As applied and on its face, the Injunction is content and viewpoint-based, is not necessary to serve a compelling state interest, nor narrowly drawn to achieve that end. The Injunction fails the *O'Brien* and the time, place, and manner tests. The Injunction is also overbroad and vague. Subjecting numerous people not associated with those named in the Injunction to arrest proves that the Injunction is substantially overbroad. Since free speech is at stake, precision of drafting and clarity is essential. The Injunction also acts as a classic prior restraint and violates Petitioners' right to free association.

The Injunction is content and viewpoint-based. Judge McGregor admitted the Injunction censors only pro-life speech. Since the Injunction prohibits "images observable," enforcement requires a content analysis. A "For Sale" sign next to the Clinic is permitted, but a "Choose Life" sign violates the Injunction. The Injunction allows only invited speech of a "non-threatening" nature. The term "non-threatening" is content-based because speech is restricted by the reaction of the listener.

The Injunction is also viewpoint-based. Not only does the Injunction violate a broad class of speech (abortion), but it further restricts a subclass of that speech (anti-abortion). The Injunction has licensed one side of the debate, allowing pro-choice but not pro-life speech. If an "agent" of the Clinic or a person "seeking the services of the Clinic" is not "interested" in the content of the speech, then that person can censor the speech. Censorship occurs based on whether the speech is opposed to abortion. Government may not regulate in ways that favor some viewpoints at the expense of others.

The Injunction is not necessary and is not narrowly drawn to achieve a compelling state interest. One of the stated interests is the right to abortion. The right of Petitioners is the right to free speech. There is no evidence that any woman was prevented from obtaining an abortion. If reasonable state regulations designed to persuade a woman to choose childbirth over abortion will be upheld, then individual free speech of similar persuasion cannot be prohibited. The clash is between an actual prohibition of speech and a potential hindrance to the free exercise of abortion. However, the state already has numerous laws protecting personal safety, public order, free flow of traffic, and property rights. The 1992 permanent injunction, which is not challenged here, protects the interests of the Clinic and patients while not restricting free speech. Likewise, Sections (1) and (2) of the Injunction rightfully balance these interests, but Sections (3) through (9) squelch free speech and are not necessary to achieve any governmental interests. The Injunction is not necessary, not narrowly tailored and not the least restrictive means.

The Injunction also fails the *O'Brien* and the time, place, and manner tests. The *O'Brien* test is inapplicable since the Injunction regulates speech. The time, place, and manner test has never been applied by this Court to injunctions. However, even if this test were appropriate, the Injunction is anything but reasonable. It acts as a prior restraint and proscribes more speech than is necessary to achieve any stated interest. The Injunction flatly bans speech within the thirty-six foot zone, images observable, and all other speech outside the thirty-six foot zone at the discretion of the listener. No other alternative means of communication is available to Petitioners.

The Injunction requires the arrest of all pro-life persons penetrating the forbidden zone. While Sections (1) and (2) apply to otherwise illegal activities and thus do not violate constitutional liberties, Sections (3) through (9) provide no tangible criteria for enforcement officials to follow.

The Injunction prohibits sounds, whether willful or not, and images which can be seen within the Clinic. The three-hundred foot

radius, encompassing 6.49 acres, applies to the Clinic and to residential areas. It further prohibits "crowding" and language that is "intimidating," "harassing," or "encouraging." The Injunction further applies outside the three-hundred foot zone, allowing speech only if the listener shows a positive interest.

The Injunction is vague. The phrase "acting in concert" is problematic for law enforcement officials. Police officers have understood the Injunction to require the arrest of any pro-life individual entering the forbidden zone. Clinic "agents" point out pro-life individuals for arrest. The Injunction restricts free expression around "agents," but never defines the term. It prohibits speech "during surgical procedures and recovery periods" without stating when these times begin or end. The Injunction prohibits all "images observable." A pro-life person is prohibited from approaching any person "seeking the services of the Clinic." A pro-life speaker is not able to determine who is "seeking the services of the Clinic" one-hundred yards away. If permission to speak is granted, the conversation must be of a "non-threatening" nature. "Sidewalk counseling" is prohibited but is never defined. While allowing "invited contact," a pro-life speaker is unable to determine when consent to speak has ended.

The Injunction acts as a classic prior restraint. It flatly prohibits speech within the thirty-six foot zone and outside the thirty-six foot zone if it is "intimidating," "encouraging," not "invited," or if the listener has no "interest" in the content. The threat of prosecution under the Injunction chills speech.

The breadth of the Injunction violates Petitioners' right to free association by penalizing all persons having a pro-life viewpoint by eradicating group advocacy. Petitioners are lumped together with certain named and unnamed individuals simply because they share a pro-life belief. Petitioners are not members of Operation Rescue, yet the alleged acts of Operation Rescue are imputed to Petitioners. Petitioners have not been disruptive, nor have they created violence, but because of some other alleged disruptive activity Petitioners have lost their right to speak and associate. The Injunction places

a blanket prohibition on pro-life association.

The 1992 permanent injunction, which is not challenged here, protects the Clinic's interest without infringing Petitioners' free speech. The 1993 Injunction goes beyond the interest asserted and violates the first amendment. This Court should therefore find the Injunction unconstitutional, and in so doing, the 1992 permanent injunction will remain to protect any government interest.

ARGUMENT

I.

THE INJUNCTION VIOLATES PETITIONERS' RIGHT TO FREE SPEECH.

The founding fathers "believed that freedom to think as you will and to speak as you think are means indispensable to the discovery and spread of political truth Believing the power of reason as applied through public discussion, they eschewed silence coerced by law--the argument of force in its worse form." *Whitney v. California*, 274 U.S. 357, 374-75 (1929) (Brandeis, J., concurring). Such reverence for free speech is nowhere more important than in quintessential public fora which from time immemorial have been open for public debate. The Eleventh Circuit and the Florida Supreme Court agreed that the Injunction affected a traditional public forum--specifically the public streets and sidewalk surrounding the Clinic. *Frisby v. Schultz*, 487 U.S. 474, 479, (1988); *ISKCON v. Lee*, 112 S.Ct. 2711, 2716-17 (1992) (Kennedy, J., concurring); *Perry Education Association v. Perry Local Educators' Association*, 460 U.S. 37, 45 (1983).

A. The Injunction Is Content And Viewpoint-Based, Is Not Necessary To Serve A Compelling State Interest And Is Not Narrowly Drawn To Achieve That End.

It is undisputed that the Injunction restricts speech within a traditional public forum. Therefore, if the Injunction is content-

based, it must satisfy strict scrutiny. The Injunction must be necessary to serve a compelling state interest and must be narrowly drawn to achieve that end. *See Perry*, 460 U.S. at 45. The Injunction is both content and viewpoint-based. After singling out abortion related speech, the Injunction allows pro-choice speech but prohibits pro-life expression.

1. The Injunction is both content and viewpoint-based.

"The First Amendment generally prevents government from proscribing speech, or even expressive conduct, because of disapproval of the ideas expressed. Content-based regulations are presumptively invalid." *R.A.V. v. City of St. Paul*, 112 S.Ct. 2538, 2542 (1992). "If there is a bedrock principle underlying the First Amendment, it is that government may not prohibit the expression of an idea simply because society finds the idea itself offensive or disagreeable." *Simon & Schuster v. New York Crime Victims Board*, 112 S.Ct. 501, 509 (1991).

Clearly the "government may not grant the use of a forum to people whose views it finds acceptable, but deny use to those wishing to express less favorable or more controversial views." *Police Department of Chicago v. Mosley*, 408 U.S. 92, 95-96 (1972); *see also Lamb's Chapel v. Center Moriches Union Free School District*, 113 S.Ct. 2141 (1993); *Widmar v. Vincent*, 454 U.S. 263 (1981). Content-based regulations simply cannot be tolerated. *See Forsyth County v. The Nationalist Movement*, 112 S.Ct. 2395, 2404 (1992); *Regan v. Time, Inc.*, 468 U.S. 641, 648-49 (1984). Stressing its disdain for content-based prohibitions, this Court stated that "[a]ny restriction on expressive activity because of its content would completely undercut the 'profound national commitment to the principle that debate on public issues should be uninhibited, robust and wide open.'" *Mosley*, 408 U.S. at 95-96 (quoting *New York Times Co. v. Sullivan*, 376 U.S. 254, 270

(1963)).²

To be content neutral, the Injunction must apply equally to all forms of speech.³ Content neutral regulations are those that are "justified without reference to the content of the regulated speech." *Virginia State Board of Pharmacy v. Virginia Citizens Consumer Council, Inc.*, 425 U.S. 748, 771 (1976). As admitted by Judge McGregor, the Injunction only censors people holding pro-life beliefs.⁴ To Mr. Lacy, Judge McGregor stated that the Injunction

² "Regulations which permit the government to discriminate on the basis of the content of the message cannot be tolerated under the First Amendment." *Simon & Schuster*, 112 S.Ct. at 508. Content-based regulations of speech constitute "censorship in a most odious form" and clearly violate the first amendment. *Cox v. Louisiana*, 379 U.S. 536, 581 (1965) (Black, J., concurring). "Education is the proper and preferable alternative to censorship." *Whitney*, 274 U.S. at 360.

³ "Content-based restrictions also have been held to raise Fourteenth Amendment equal-protection concerns because, in the course of regulating speech, such restrictions differentiate between types of speech." *Burson v. Freeman*, 112 S.Ct. 1846, 1850 n.3 (1993). The Injunction deprives Petitioners of fundamental rights because free speech is "among the fundamental personal rights and liberties which [is] protected by the Fourteenth Amendment from invasion by state action." *Lovell v. Griffin*, 303 U.S. 444, 450 (1938). The Injunction clearly classifies individuals based upon pro-life or pro-choice expression. Such class-based discrimination violates free speech and equal protection. See also *Burlington Northern R. Co. v. Ford*, 112 S.Ct. 2184 (1992).

⁴ This Court "must consider [Judge McGregor's] authoritative constructions of the [Injunction], including [his] own implementation and interpretation of it. In the present litigation, the [Judge] has made clear how [he] interprets and implements the [Injunction]." *Forsyth County*, 112 S.Ct. at 2402 (citations omitted); see also *Lakewood v. Plain Dealer Publishing Co.*, 486 U.S. 750 (1988). This Court has the authority to conduct its own *de novo* review. *Peel v. A. Horney Registration & Disciplinary Commission of Illinois*, 110 S.Ct. 2281, 2291-92 (1990); *Bose Corp. v. Consumers United of United States, Inc.*, 466 U.S. 485, 509

"did not pertain to those on the other side of the issue." J.A. 71. When John Doe No. 16 asked upon what basis was the determination to arrest made, Judge McGregor responded by saying the Injunction applied to those who "seemed to be supportive of pro-life." J.A. 72. John Doe No. 16 asked Judge McGregor if he intended that the Injunction "would apply only to people that were demonstrating that were pro-life?" To which Judge McGregor responded: "In effect, yes." J.A. 74. After John Doe No. 31 was arrested, he told Judge McGregor he had never seen the Injunction. The judge responded that it applied to those of a "pro-life position" and stated that if John Doe No. 31 was actually pro-choice "perhaps the prosecutor wouldn't bring the formal charge." J.A. 77.

"Several of those arrested testified (at a preliminary hearing convened by Judge McGregor as provided for in the Injunction) that they were designated for arrest by Clinic workers and police officers because they were perceived to be 'pro-life'." *Cheffer v. McGregor*, 6 F.3d 705, 711 n.11. (11th Cir. 1993). The Eleventh Circuit found:

Judge McGregor accepted this interpretation of the intent of the Injunction and explained (to the arrestees): "[T]he Injunction did not pertain to those on the other side of the issue, because the word 'in concert with' means in concert with those who had taken a certain position in respect to the Clinic, adverse to the Clinic. *If you are saying that is [the] selective basis that the pro-choice were not arrested when pro-life was arrested, that's the basis of that selection.*"

Id. (emphasis supplied).

Section (4) prohibits **images observable** to patients inside the Clinic. Obviously this section is not intended to restrict "For Sale" signs, political signs, street signs, billboards, or birthday party signs

(1984); *Edwards v. South Carolina*, 372 U.S. 229, 235 (1963).

on someone's property. The images prohibited are signs such as "Baby Killer," "Child Murderer," or "Choose Life." Since the Injunction restricts "images observable," applying the phrase "in concert" requires a content-based decision. If the image supports the views of those named in the Injunction, then the image is banned. There is no other way to relate those acting in concert with the restriction on images other than to make a content-based classification.

Section (5) allows **invited** speech, but only of a **non-threatening nature**. Asking directions of a person seeking the services of the Clinic, or asking the time of day, normally should be non-threatening, but what if the conversation occurred in the early twilight hours when few other people were around? If the person felt threatened, does the Injunction apply? What if the encounter involved handing the same person pro-life literature, or if the pro-life person said, "Don't kill your baby!" The fact that the answer to these questions depends on the listener's reaction makes the Injunction content-based. "Listeners' reaction to speech is not a content-neutral basis for regulation." *Forsyth County*, 112 S.Ct. at 2403.

Certainly Section (6) would not prohibit labor pickets, anti-nuclear pickets, or an environmental protester, but it would prohibit the lone pro-life picketer. In *Johnson*, this Court overturned a flag burning conviction because prosecution "depended on the likely communicative impact" of expressive conduct. *Texas v. Johnson*, 491 U.S. 397, 411 (1989). Such restrictions are content-based. The Injunction silences speech based on the reaction of the listener. "The emotive impact of speech on its audience is not . . . unrelated to the content of the expression itself." *Boos v. Barry*, 485 U.S. 312, 321 (1988).

Both the state judge drafting the Injunction and police officers arresting pro-life speakers have enforced the Injunction on the basis of the content of speech. Pro-life demonstrators are arrested for violating the Injunction, while pro-choice demonstrators are not. J.A. 71, 74, 77. The sole determining factor is whether the person

in the no speech zone holds a pro-life belief. "The practical effect of [the "in concert"] section of the Injunction was to assure that while 'pro-life' speakers would be arrested, 'pro-choice' demonstrators would not." *Cheffer*, 6 F.3d at 711.

Judge McGregor indicated the Injunction was intended to prohibit picketing and demonstrations by all persons who identified themselves as pro-life. He also stated that those having pro-choice beliefs were free to be on the public sidewalk and right-of-way without violating the Injunction. J.A. 72. In application, pro-choice and pro-life persons have stood side-by-side, one being arrested and one not. J.A. 75. Such a one-sided proscription of speech is clear evidence that the Injunction is content-based and presumptively invalid. See *R.A.V.*, 112 S.Ct. at 2542.

The Injunction's restriction of pro-life speech and exemption of pro-choice speech establishes that it is not viewpoint-neutral. The Eleventh Circuit stated:

The order enjoins Operation Rescue, Operation Rescue America, Operation Goliath, their officers, agents, members, employees and servants, and Ed Martin, Bruce Cadle, Pat Mahoney, Randall Terry, Judy Madsen, and Shirley Hobbs, and all persons acting in concert or participation with them or on their behalf Such a restriction is no more viewpoint-neutral than one restricting the speech of "the Republican party, the state Republican party, George Bush, Bob Dole, Jack Kemp and all persons acting in concert or participation with them or on their behalf."

Cheffer, 6 F.3d at 710-11.

Not only is the Injunction content-based, it is also viewpoint-based. The Injunction not only regulates a broad class of speech (abortion speech), but further restricts a subclass of that speech (anti-abortion speech) "based on hostility--or favoritism--towards the underlying message expressed." *R.A.V.*, 112 S.Ct. at 2545. The

state "has no authority to license one side of a debate to fight freestyle, while requiring the other to follow Marquis of Queensbury Rules." *Id.* at 2548. The Injunction allows speech favoring abortion rights because such would be non-threatening to the person seeking the services of the Clinic, but restricts pro-life speech. Thus, within the category of abortion speech, only speech favoring abortion is permitted while speech opposing abortion is damned. For example, the decretal portion of the Injunction speaks of "invited contact" which is permissible outside of the zones but only if the person sought to be contacted physically approaches and indicates "a positive interest" in what is being said. J.A. 63. See *Schacht v. United States*, 398 U.S. 58, 63 (1970) (statute "which leaves Americans free to praise the war in Vietnam but can send persons . . . to prison for opposing it, cannot survive in a country which has the First Amendment"); see also *Johnson*, 491 U.S. at 417. This differential treatment based upon viewpoint should meet with *exacting scrutiny*. See *R.A.V.*, 112 S.Ct. at 2544, 2546; *Simon & Schuster*, 112 S.Ct. at 508; *Boos*, 485 U.S. at 320-22. The government may not regulate speech "in ways that favor some viewpoints or ideas at the expense of others." *Members of the City Council of City of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 787, 804 (1984).

The Injunction enacts a sweeping ban of pro-life speech in a traditional public forum. No such ban exists on pro-choice speech. Such differential treatment and denial of access to a traditional public forum based upon content and viewpoint is unconstitutional. See *City of Cincinnati v. Discovery Network, Inc.*, 113 S.Ct. 1505 (1993).

2. The Injunction is not necessary and not narrowly drawn to serve a compelling state interest.

"The danger of censorship presented by content-based [regulation] requires that the weapon be employed only where it is necessary to serve the asserted compelling interest." *R.A.V.*, 112 S.Ct. at 2549 (citing *Leathers v. Medlock*, 111 S.Ct. 1438, 1444 (1991)). A restriction on free speech must not "burden substantially

more speech than is necessary to further the government's legitimate interests." *Ward v. Rock Against Racism*, 491 U.S. 781, 799 (1989).

"Under either a free speech or equal protection theory, a content-based regulation of political speech in a public forum is valid only if it can survive strict scrutiny." *Burson*, 112 S.Ct. at 1851 n.3; see *Boos*, 485 U.S. at 321 ("the most exacting scrutiny"); *Heffron v. ISKCON*, 452 U.S. 640 (1981) (prohibitions of speech on public streets and sidewalks must be subject to strict scrutiny). Speech related to abortion is political speech and is "entitled to the fullest possible measure of constitutional expression." *Taxpayers for Vincent*, 466 U.S. at 816. "An assertion that . . . 'Abortion is Murder,' that every woman has the 'Right to Choose' . . . is just as strong as [political speech]." *Id.* "Indeed, abortion may be the political issue of the last 20 years." *Planned Parenthood Shasta-Diablo Inc. v. Williams*, 18 Cal. App. 4th 359, 375, 16 Cal. Rptr. 2d, 540, 549 (Cal. Ct. App.), *rev. granted*, 851 P.2d 744, 19 Cal. Rptr. 2d 492 (Cal. 1993). The *Cheffer* court found the Injunction did not survive strict scrutiny.⁵

In balancing the right of free speech against other individual rights this Court has held that there is a "narrow area in which the First Amendment permits freedom of expression to yield to the extent necessary for the accommodation of another constitutional right." *Burson*, 112 S.Ct. at 1859 (Kennedy, J., concurring).⁶

⁵ "A viewpoint-specific restriction in a traditional public forum is unconstitutional unless (1) it is necessary to serve a compelling state interest and (2) it is narrowly drawn to achieve that end. The state court Injunction does not seem to be either." *Cheffer*, 6 F.3d at 711 (citations omitted).

⁶ Though the content-based restriction in *Burson* was upheld, that case differs from the instant case. First, the right to vote is the right of all rights, without which no other right exists. *Burson*, 112 S.Ct. at 1851; *Wesberry v. Sanders*, 376 U.S. 1, 17 (1964) ("No right is more precious Other rights, even the most basic, are illusory if the right to vote

Traditionally, this "narrow area" is only applied in cases involving content neutral restrictions or limitations on free speech. See *Rowan v. United States Post Office Department*, 397 U.S. 728 (1970); *Ward*, 491 U.S. at 781; *Public Utilities Commission v. Pollack*, 343 U.S. 451 (1952); and *Kovacs v. Cooper*, 336 U.S. 921 (1949).

Significantly, this yielding of First Amendment rights to other competing rights becomes even narrower when confronted with restrictions on political speech and expression. The right to political expression lies at the core of the first amendment. See *Meyer v. Grant*, 486 U.S. 414, 420 (1988). A "content-based restriction on political speech in a public forum . . . must be subject to the most exacting scrutiny." *Boos*, 485 U.S. at 321 (emphasis in original).

Both the federal and state courts discussed the question of whether the Injunction served any asserted government interest. The Florida Supreme Court noted the government's interest in a woman's right to an abortion, public order, the free flow of traffic and protecting property. The *Cheffer* court recognized a woman's right to an abortion and noted the difficulty in weighing the value of conflicting constitutional rights. "Our sister circuit described a similar abortion protest case as a 'clash . . . between constitutional rights defined by the Supreme Court: an old one tracing its roots to the speech clause of the First Amendment and before, and a new one stemming from *Roe v. Wade*.'" *Cheffer*, 6 F.3d at 17 (quoting *Mississippi Women's Medical Clinic v. McMillan*, 866 F.2d 788, 791 (5th Cir.1989)). However, "in the instant case there is no

is undermined") Second, the restriction was based on history to the extent that Justice Scalia found the sidewalks lost their public forum status. *Burson*, 112 S.Ct. at 1859-61. Finally, abortion "is much less explicitly protected by the Constitution than, for example, the right of free speech." *Bray v. Alexandria Women's Health Clinic*, 113 S.Ct. 753, 764 (1993). If reasonable state regulations designed to "persuade [a woman] to choose childbirth over abortion will be upheld," then individual free speech of a similar persuasion cannot be prohibited. *Planned Parenthood of Southeastern Pennsylvania v. Casey*, 112 S.Ct. 2791, 2821 (1992).

indication in the record that women were actually prevented from obtaining abortions at the Aware Woman Center for Choice. *The clash here is between an actual prohibition of speech and a potential hindrance to the free exercise of abortion rights.*" *Cheffer*, 6 F.3d at 711 (emphasis supplied).

In specifically addressing "the First Amendment rights of protestors to advocate a right-to-life position [versus] the privacy interests of women who seek abortions while being insulated from the protestors advocacy," the Fifth Circuit Court of Appeals noted the first amendment "tilts the scale assessing threatened harm decisively in favor of the protestors." *McMillan*, 866 F.2d at 795. "The First Amendment retains a primacy in our jurisprudence because it represents the foundation of a democracy--informed public discourse." *Id.* at 796.

The other asserted interests--public safety and order, assuring the free flow of traffic and protecting property--are already well protected by other applicable laws.⁷ Indeed, *Cheffer* found other state laws could easily protect those interests without infringing upon the First Amendment rights of others. 6 F.3d at 711. Statutes regulating disturbance of the peace already protect public safety and order. As for the free flow of traffic, congestion is also already protected by applicable traffic regulations. This interest can be protected by the less drastic means of enforcing laws regulating pedestrian and vehicle traffic. Other asserted public order

⁷ Fla. Stat. §§ 870.041 - 870.047 (Preservation of the public peace by local authority); Fla. Stat. § 316.130 (Pedestrian obedience to traffic control devices and traffic regulation); Fla. Stat. § 316.2045 (Obstruction of public streets, highways, and roads); Fla. Stat. § 316.2055 (Throwing advertising materials in motor vehicles); Fla. Stat. § 836.05 (Threats; extortion); Fla. Stat. § 836.10 (Written threats to kill or do bodily injury); Fla. Stat. § 838.021 (Corruption by threat against public servant); Fla. Stat. Chapter 784 (Assault; battery; culpable negligence); Fla. Stat. Chapter 806 (Arson and criminal mischief); Fla. Stat. § 837.05 (False reports to law enforcement authorities); Fla. Stat. § 784.048 (Stalking); Fla. Stat. Chapter 810 (Burglary and trespass).

interests--such as threats, assault or battery, criminal mischief and stalking--are also already prohibited by applicable law. J.A. 44. The Clinic's private property, and the associated residences, can be protected by trespass laws already in force. Truly, the Injunction does not serve to protect any interest which is not already protected and therefore is not necessary to serve any government interest. *Johnson*, 491 U.S. at 410, 412 n.8.

An injunction must be narrowly tailored to serve a compelling state interest. *See Frisby*, 487 U.S. at 482. Government "may not regulate expression in such a manner that a substantial portion of the burden on speech does not serve to advance its goals." *Ward*, 491 U.S. at 799; *see also City of Houston v. Hill*, 482 U.S. 451, 464-67 (1987) (requiring that regulations on free speech be "narrow and precise").⁸ As this Court noted:

An order issued in the area of First Amendment rights must be couched in the narrowest terms that will accomplish the pin-pointed objective permitted by constitutional mandate and the essential needs of the public order. In this sensitive field, the State may not employ "means that broadly stifle fundamental personal liberties when the end can be more narrowly achieved" In other words, the order must be tailored as precisely as possible to the exact needs of the case.

Carroll v. Presidents and Commissioners of Princess Anne, 393 U.S. 175, 183-4 (1968) (quoting *Shelton v. Tucker*, 364 U.S. 479, 488 (1960)). A regulation "is not narrowly tailored if a less restrictive alternative is readily available." *Boos*, 485 U.S. at 329; *see also Wygant v. Jacksonville Board of Education*, 476 U.S. 267, 280 n.6 (1986) (plurality opinion).

In this instance, the Injunction is not narrowly tailored to serve

⁸ Argument I. C. 1., *supra*, pp. 24-30, discusses the overbreadth. As such, the Injunction is not narrowly tailored to target the asserted interests.

the alleged government interest. The Injunction prohibits a person from standing on a public sidewalk or right-of-way while carrying a sign or wearing a shirt with a pro-life message. An individual is prohibited from distributing pro-life literature. The practical effect of the Injunction results in the total exclusion of pro-life speech. Such an outright ban is unconstitutional. *See Board of Airport Commissioners of Los Angeles v. Jews for Jesus*, 482 U.S. 569 (1987); *Frisby*, 487 U.S. at 485; *Schneider v. State*, 308 U.S. 147, 162-63 (1939).

Under the Injunction, a person wearing a "Choose Life" t-shirt near the Clinic invokes the wrath of the Injunction. A person walking within one-hundred yards of a residential area cannot carry a picket sign, discuss pro-life beliefs with another individual, or distribute pro-life literature. In essence, the person must keep silent in order to avoid prosecution. The Injunction has instituted a six and one-half acre zone of silence punishable by the wrath of the court if the silence is broken. This general prohibition against free speech within residential areas is not narrowly tailored. *See Frisby*, 487 U.S. at 2502-06; *Howard Gault Co. v. Texas Rural Legal Aid*, 848 F.2d 544 (5th Cir. 1988); *Vittitow v. City of Upper Arlington*, 830 F. Supp. 1077 (S.D. Ohio 1993); *City of Prairie Village v. Hogan*, 253 Kan. 423, 855 P.2d 949 (1993); *Town of Barrington v. Blake*, 568 A.2d 1015 (R.I. 1990).

The September 1992 permanent injunction prohibits trespassing, blocking, impeding, and physical abuse. J.A. 9. Sections (1) and (2) of the Injunction reincorporate the 1992 injunction. These provisions protect the asserted interests. However, Sections (3) through (9), relating to restrictions on expression, are not in any way related to the furtherance of these interests. "[T]he availability of alternatives such as [the September 1992 injunction and Sections (1) and (2) of the Injunction] amply demonstrates that [Sections (3) through (9) are] not crafted with sufficient precision to withstand First Amendment scrutiny." *Boos*, 485 U.S. at 329.

The Injunction is not narrowly tailored to prevent the type of

evil asserted because it broadly proscribes peaceful speech. In *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886 (1982),⁹ this Court held that in the context of protected speech, courts must narrowly tailor restrictions on speech to "restrain *only unlawful conduct* and the *persons responsible for conduct* of that character." *Id.* at 924 n.67 (emphasis supplied). "Precision of regulation" is demanded when "conduct occurs in the context of constitutionally protected activity." *Id.* at 916.

The Injunction reaches beyond the thirty-six foot zone and indiscriminately prosecutes without regard to the activity's, or the person's, peaceful nature. The Injunction eviscerates Petitioners' First Amendment right to peacefully express their pro-life views and completely squelches all pro-life expression irrespective of the manner, median or means of that expression. The Injunction can in no way be construed narrowly to prohibit only unlawful conduct. As such, the Injunction violates the first amendment. *See Jews for Jesus*, 482 U.S. at 575-77.

B. The Injunction Fails The *O'Brien* And The Reasonable Time, Place, And Manner Tests.

The Injunction regulates speech and is not only content but is viewpoint-based. However, assuming, *arguendo*, that the Injunction is content neutral, it fails the *O'Brien* test and the time, place, and manner tests.

Under *United States v. O'Brien*, 391 U.S. 367 (1968), a government regulation is justified if it is (1) within the constitutional power of the government; (2) furthers an important or substantial governmental interest; (3) the interest or regulation is unrelated to the suppression of free expression; and, (4) the regulation places only an incidental restriction on free speech and is not greater than

⁹ The Florida Supreme Court specifically refused to recognize Petitioners' arguments based on *Claiborne Hardware*. The Florida Supreme Court limited *Claiborne Hardware* to the issue of damages and expressly rejected any first amendment application. Pet. App. A-24.

is essential to further that interest. *Id.* at 377. The "*O'Brien* test 'in the last analysis is little, if any, different from the standard applied to time, place, or manner restrictions.'" *Ward*, 491 U.S. at 798 (quoting *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 298 (1984)).

The Injunction fails the *O'Brien* test. First, although the state has authority to issue injunctions, the evidence does not support the Injunction against Petitioners' right to free expression, let alone those not before the court. Second, since the Injunction restrains expressive activity,¹⁰ the *O'Brien* test is simply inapplicable. *Johnson*, 491 U.S. at 403, 406-07; *Spence v. State of Washington*, 418 U.S. 405, 414-15 n.8 (1974).

While this Court has utilized the time, place, and manner analysis on statutes, ordinances, and regulations,¹¹ applying this analysis to an injunction involving expression, rather than conduct, is impermissible. Such an injunction would be a prior restraint

¹⁰ The Injunction forbids singing, chanting, whistling, shouting, yelling, sounds, images observable, leafletting, congregating, picketing, patrolling, and demonstrating. It restricts speech that is intimidating, encouraging, or inciting. Non-threatening speech is permitted only with those who show a desire to communicate by approaching, inquiring or inviting contact. Speech must end when the listener expresses words that indicate a desire to end the contact, or words or actions of similar import. Unlike the Injunction which regulates speech, the statute in *O'Brien* dealt with "conduct having no connection with speech." *O'Brien*, 391 U.S. at 375. Activities "such as singing and chanting on public sidewalks, are protected, expressive activity." *Planned Parenthood League of Massachusetts v. Operation Rescue*, 406 Mass. 701, 714, 550 N.E.2d 1361, 1369 (1990).

¹¹ This Court has never applied this test to injunctive restrictions on expressive activity. *See, e.g., Cox*, 379 U.S. 559 (statute); *Frisby*, 487 U.S. at 474 (ordinance); *Community for Creative Non-Violence*, 468 U.S. at 288 (regulations).

subject to strict scrutiny.¹² However, even if the time, place, and manner analysis were appropriate for injunctions, the present Injunction fails this test. Reasonable time, place, and manner restrictions on expression are permissible only if the regulation is content neutral, narrowly tailored to serve a significant government interest, and leaves open ample alternative means of communication. See *Ward*, 491 U.S. at 798-99; *Frisby*, 487 U.S. at 481; *United States v. Grace*, 461 U.S. 171, 177 (1983); *Perry*, 460 U.S. at 45.

The Florida Supreme Court never found the state had a compelling governmental interest but rather indicated that the interests were "significant," citing a woman's freedom to seek lawful medical or counseling services, insuring public safety and order, and protecting property. Assuming these stated interests are significant, the question is whether the Injunction is a *reasonable* time, place, and manner restriction. The Florida Supreme Court reasoned that the restrictions addressed only volume, timing, location, and violent or harassing expressive activity of Operation Rescue.¹³ Pet. App. A-14. The court then found that the restrictions were narrowly tailored because, unlike "generally disseminated communication that cannot be completely banned in public places, the picketing was directed at particular clinic workers and patients, not the public at large." Pet. App. A-17. The court then cited *Frisby* for the proposition that targeted picketing was prescribable. The court conceded that "while the trial court might perhaps have achieved its goal through use of a slightly narrower buffer zone around the clinic workers' residences, or by perhaps allowing a solitary picketer within the buffer zone as a symbolic gesture," the court refused to sit as a "trier-of-fact and make incremental changes in the trial court's order." Pet. App. A-18.

¹² The injunction would also be content-based. An injunction singles out individuals and is not generally applicable like a statute. An injunction that focuses in large part on expressive activity rather than conduct limits that expressive activity precisely because of its content.

¹³ As pointed out in Argument II, *infra*, pp. 44-50, Petitioners are not associated with Operation Rescue.

The Florida Supreme Court's decision is fundamentally flawed. Petitioners' expression is not solely directed at the Clinic, workers, and patients, but is directed to the public at large. The Clinic is situated on the corner of U.S. Highway 1 and Dixie Way. The Injunction goes beyond restricting mere timing, location, and violent or harassing activity. In fact, *there is no evidence of violent activity*. The trial court never made such a finding and the evidence does not support one. The flat ban on singing, chanting, images observable, and consent speech have nothing to do with the stated interests.

The state "may not regulate expression in such a manner that a substantial portion of the burden on speech does not serve to advance its goals." *Simon & Schuster*, 112 S.Ct. at 511; *Ward*, 491 U.S. at 799; *Frisby*, 487 U.S. at 485. The Injunction on its face bans the distribution of literature absent "invited contact." As this Court has recognized:

A ban on handbilling, of course, would suppress a great quantity of speech that does not cause the evil that it seeks to eliminate, whether they be fraud, crime, litter, traffic congestion or noise For that reason, a complete ban on handbilling would be substantially broader than necessary to achieve the interest justifying it.

Ward, 491 U.S. at 799 n.7 (citation omitted).

Petitioners do not shed their constitutional rights when they enter the forbidden zone. See *Tinker v. Des Moines Independent School District*, 393 U.S. 503 (1969). This right "extends to the communication of ideas by handbills and literature as well as by the spoken word." *Taxpayers for Vincent*, 466 U.S. at 810 (citing *Jamison v. Texas*, 318 U.S. 413, 416 (1943)); see also *Kovacs*, 336 U.S. at 87; *Martin v. City of Struthers*, 319 U.S. 141, 149 (1943); *Cantwell v. Connecticut*, 310 U.S. 296, 308 (1940); *Schneider*, 308 U.S. at 163. The ban on handbilling is substantially broader than any alleged interest and is not a *reasonable* time, place, and manner restriction.

Finally, the Florida Supreme Court misread this Court's decision in *Frisby*. While *Frisby* allows restrictions on targeted residential picketing, *Frisby* did not deal with a ban on general "marching through residential neighborhoods, or even walking around in front of an entire block of houses." *Frisby*, 487 U.S. at 483. By contrast, the Injunction bans picketing within three-hundred feet from all sides of the Clinic or house, an area exceeding six acres. Such ban could swallow an entire neighborhood. This restrictive ban on expressive activities does not leave open ample alternative means of communication. "Freedom of expression would not truly exist if the right could be exercised only in an area that a benevolent government has provided as a safe haven for crackpots." *Tinker*, 393 U.S. at 513. Petitioners should not have the exercise of their "liberty of expression in appropriate places abridged on the plea that it may be exercised in some other place." *Southeastern Promotions, Ltd. v. Conrad*, 420 U.S. 526, 556 (1975) (quoting *Schneider*, 308 U.S. at 163).¹⁴ The right to speak "extends to the aggressive and disputatious as well as to the meek and acquiescent." *Martin*, 319 U.S. at 149. Unfortunately, the Injunction takes away this right and is therefore unconstitutional.

C. The Injunction Is Overbroad And Vague.

1. The Injunction is overbroad.

When free speech is at stake, "precision of drafting and clarity of purpose are essential." *Erznoznik v. City of Jacksonville*, 422 U.S. 205, 212-13 (1975). Because of the substantial overbreadth of the Injunction, Petitioners' challenge is both as applied and on its

¹⁴ See also *Taxpayers for Vincent*, 466 U.S. at 1812 (restriction on expressive activity may be invalid if "remaining modes of communication are inadequate"); *Grace*, 461 U.S. at 180-81 (existence of other streets and sidewalks is not a sufficient alternative to justify a total ban).

face. *Taxpayers for Vincent*, 466 U.S. at 796.¹⁵

An overbroad regulation is subject to a facial challenge. A facial challenge is appropriate here because the Injunction "lends itself to harsh and discriminatory enforcement by local prosecuting officials against particular groups deemed to merit their displeasure" and ultimately results in a "pervasive restraint" on free expression. *Thornhill v. Alabama*, 310 U.S. 88, 97-98 (1940). The Injunction's "very existence may cause others not before the court to refrain from constitutionally protected speech or expression." *Broadrick v. Oklahoma*, 413 U.S. 601, 612 (1973). Indeed, the Eleventh Circuit in *Cheffer* proves this point.¹⁶ The overbreadth of the Injunction gave Myrna Cheffer standing to challenge the Injunction in a collateral attack.¹⁷

¹⁵ See also *Saia v. New York*, 334 U.S. 558 (1948) (facial challenge permitted because of discretion given to law enforcement); *Cantwell*, 310 U.S. 296 (facial challenge permitted because of a licensing requirement without appropriate standards); *Schneider*, 308 U.S. 147 (same); *Hague v. CIO*, 307 U.S. 496 (1939) (facial challenge permitted because of uncontrolled discretion).

¹⁶ The Eleventh Circuit recognized that "when Judge McGregor issued the Amended Permanent Injunction in the state case, he, in effect, created a criminal statute prohibiting 'pro-life' free speech activity in a certain geographical location." *Cheffer*, 6 F.3d at 708. The *Cheffer* opinion further pointed out that "Judge McGregor crafted a law that seems to apply to Cheffer, who is neither party nor an agent of any party." *Id.*

¹⁷ Noting that standing requirements to challenge speech restrictions were less strict, the court stated that litigants "are permitted to challenge a statute not because their own rights of free expression are violated, but because of a judicial prediction or assumption that the statute's very existence may cause others not before the court to refrain from constitutionally protected speech or expression." *Cheffer*, 6 F.3d at 708-09 (quoting *Virginia v. American Book Sellers Association, Inc.*, 484 U.S. 383, 392-93 (1988)) (quotations omitted); see also *Secretary of State of Maryland v. Joseph H. Munson Co.*, 467 U.S. 947, 956-57 (1984); *Broadrick*, 413 U.S. at 612.

The term **in concert** "unquestionably attaches sanctions to protected conduct." *Taxpayers for Vincent*, 466 U.S. at 799 n.19. On April 10, 1993, two days after the entry of the Injunction, approximately fifty people were arrested while peacefully present on a public sidewalk within the thirty-six foot no speech zone.¹⁸ Those who were incarcerated on April 10 spent the weekend under arrest and appeared before Judge McGregor on April 12. Jane Doe No. 6 stated she was "just walking on the sidewalk" and "praying on the sidewalk" and stated she was "not in concert with anybody." J.A. 67, 68. Judge McGregor responded by saying there was "nothing in the Constitution that says anyone is entitled to walk on any sidewalk." J.A. 68. Mr. Quintero testified that he was on the sidewalk less than five minutes before he was arrested and he had no idea who the parties were in the Injunction, that he did not belong to any group but was "just a normal Christian that went to pray on the sidewalk." J.A. 70. To Mr. Lacy, Judge McGregor stated that the Injunction "did not pertain to those on the other side of the issue," meaning that it did not pertain to those of a pro-choice persuasion. J.A. 71. Judge McGregor also stated that when he entered the Injunction it was meant to apply only to people who were pro-life. J.A. 74. Indeed, the trial court indicated that if John Doe No. 31 could tell the prosecutor that he was pro-choice rather than pro-life, "perhaps the prosecutor would not bring the formal charge." J.A. 77.

As a result of this Injunction, by the time the City of Melbourne filed their Motion to Intervene and to Clarify on May 18, 1993, more than one-hundred pro-life persons were arrested. The City acknowledged that it interpreted "in concert" to require the arrest of any pro-life person who penetrated the thirty-six foot no speech zone, and requested advice on specific standards to determine the identity of those acting in concert or participation with those named in the Injunction. J.A. 81.

¹⁸ See transcript of hearing, April 12, 1993, before Judge McGregor, pages 18, 22, 24, 27, 32, 39, 42-44, 46, 49, 55, 56, 59, 74, 77, 79, 81, 83, 90, 98, 101, 103, 108, 112, 118, 121, 123, 126, 129, 131, 132, 136, 139, 147.

If the term "in concert" was used only in conjunction with Sections (1) and (2) of the Injunction, much of the overbreadth problem would be solved. Sections (1) and (2) simply reiterate the September 30, 1992, permanent injunction, and unlike Sections (3) through (9) of the Injunction, Sections (1) and (2) apply to otherwise illegal activities rather than to free expression. Blocking access into or egress from the Clinic is an objective identifiable activity, and even though not named in the Injunction, when an arresting officer viewed similar activities as restrained in Sections (1) and (2), it would be logical to assume some kind of "in concert" activity. However, Sections (3) through (9) provide the arresting officer no tangible criteria to follow because the prohibitions restrict free speech rather than activities. As a result, the Injunction lumps protected speech with unprotected activities. See *Claiborne Hardware*, 458 U.S. 886 (1982). Like the Eleventh Circuit in *Cheffer*, the Fifth Circuit Court of Appeals enjoined enforcement of a state court injunction that placed a three-hundred foot zone around white owned businesses because it prohibited all picketing in a designated business area due to intermittent violence. *Machesky v. Bizzell*, 414 F.2d 283 (5th Cir. 1969).¹⁹ The *Machesky* court ruled that the injunction was "unconstitutionally overbroad in that it lumps the protected with the unprotected in such a way as to abridge important public interests in the full dissemination of public expression on public issues." *Id.* at 291. By "extending the injunction to 'all persons to whom notice of the injunction should

¹⁹ Florida Rule of Civil Procedure 1.610(c) and Federal Rule of Civil Procedure 65 state that injunctions may be binding upon "those persons in active concert or participation." While both rules may not offend first amendment liberties when applied to objective conduct such as the conduct proscribed in Sections (1) and (2) of the Injunction, when applied to non-objective speech such as is found in Sections (3) through (9), the application is unconstitutional. Having no objective standard, applying the terms "in concert or active participation with" not only violates Petitioners' right to free speech but the rights of others not before this Court. Assuming such application were constitutionally permissible, the breadth of the Injunction, as defined by Judge McGregor, violates the Constitution. See brief of The Rutherford Institute as *amicus curiae*.

come,' [Judge McGregor] assumed to make punishable as a contempt the conduct of persons who act independently and whose rights have not been adjudged according to the law." *Chase National Bank v. City of Norwalk*, 291 U.S. 431, 437 (1934). Subjecting non-parties "to such peril violates established principles of equity, jurisdiction and procedure." *Id.*²⁰

Section (3) flatly prohibits **congregating, picketing, and patrolling** within the thirty-six foot no speech zone. This section also applies to neighboring record title property owners and their invitees, forcing neighboring property owners to censor their own invitees including their own free expression for fear of being lumped in with those acting "in concert." The Injunction impermissibly allows for "no exceptions" based on either the number of persons engaged in the proscribed activity or the peaceful character of their demeanor. *Thornhill*, 310 U.S. at 99. The "danger of breach of the peace or serious invasion of rights of property or privacy" is insufficient for prohibiting all speech in a quintessential public forum. *Id.* at 106; *Erznoznik*, 422 U.S. at 212. On its face, the Injunction prohibits a record title owner and any guests from displaying a pro-life "image" or making any pro-life "sound" which could be seen or heard in the Clinic. All property owners near the Clinic must remove all pro-life "images" from their property. The owner of private property, sitting peacefully within the home, must censor all "images" and "sounds" which might find their way into the eyes or ears of those next door. The property owner must screen all guests to insure no pro-life persons are invited who might wear an article of clothing advocating pro-life issues.

Section (4) prohibiting **sounds or images** observable or within earshot of the patients is clearly broader than necessary. Unlike *Grayned*, there is no "willful" modifier to the word "sounds."

²⁰ The Injunction authorizes police officers and process servers to "serve a copy of this order on any individual who may not have otherwise received notice of the order." The Injunction further directs the City of Melbourne to erect warning signs. J.A. 61.

Grayned v. City of Rockford, 408 U.S. 104, 113-14 (1972). The phrase "images observable" could literally prevent bumper stickers on parked cars, the wearing of lapel pins, or the display of a picket sign if such could be subjectively observed by someone within the Clinic. See *Burson*, 112 S.Ct. at 1862 (Stevens, J., dissenting).

Sections (5) and (6) establishing a three-hundred foot no speech zone around the Clinic and the residences of any employee, staff member, owner, or agent of the Clinic is quite troublesome. If calculated from the epicenter of the Clinic or the residence, each three hundred foot zone encompasses 6.49 acres or 282,744 square feet. Since a professional football field contains 45,000 square feet, 6.2 football fields would fit into each zone. Anyone loosely associated with the Clinic could be construed as an "agent of the Clinic." Virtually the entire City of Melbourne could be turned into a no speech zone. Because even the attorneys representing the Clinic are technically agents of the Clinic, anyone "approaching" such an agent to discuss pro-life matters is potentially subject to arrest. The "precision of regulation" demanded whenever speech is impinged is lacking. See *Claiborne Hardware*, 458 U.S. at 916-17; *NAACP v. Button*, 371 U.S. 415, 438 (1963).

The terms **intimidating** and **crowding** in Section (7) are substantially overbroad going beyond the alleged reasons for instituting the Injunction. Similarly, the term **harassing** is overbroad in Section (8). Going beyond the prevention of blocking access to or egress from the Clinic, the Injunction even prohibits **encouraging** in Section (9). Finally, the decretal portion regarding invited contact actually applies **outside of the Clinic buffer zone**, and thus outside the thirty-six and three-hundred foot zones. Consequently, even outside of the zones, a pro-life speaker risks arrests when initiating pro-life speech to someone who has not physically approached, has not extended a hand to receive literature or who has not spoken words **indicating a positive interest** in what the speaker is saying. The Injunction is substantially overbroad because it restricts speech based upon the reaction of the listener, and as this Court has recognized, a listener's "reaction to speech is not a content-neutral basis for regulation." *Forsyth County*, 112

S.Ct. at 2403; see also *Boos*, 485 U.S. at 321. The Injunction is content-based precisely because it is overbroad, and as such it is blatantly unconstitutional.²¹

The ban on handbilling is broader than necessary. See *Ward*, 109 S.Ct. at 2758 n.7. The Constitution affords Petitioners the opportunity to win the attention of the listener. See *Kovacs*, 336 U.S. at 87. City streets and sidewalks are recognized "as a normal place for the exchange of ideas by speech or paper." *Id.* Indeed, one "need not ponder the contents of a leaflet or pamphlet in order to mechanically take it out of someone's hand." *ISKCON*, 112 S.Ct. at 2713 (quoting *United States v. Kokinda*, 497 U.S. 720, 734 (1990)). Since the "distribution of literature does not require that the recipient stop in order to receive the message a speaker wishes to convey," the restriction under the Injunction is substantially broader than necessary. *ISKCON*, 112 S.Ct. at 2713-14. As this Court has recognized, the fact that a vague and overbroad restriction "lends itself to selective enforcement against unpopular causes" is enough to find it unconstitutional. *Button*, 371 U.S. at 435. In the instant case, no speculation is necessary. As applied to Petitioners, to those who have been arrested and to those not parties to the case, the Injunction clearly offends the first amendment. The Injunction is vague and overbroad and has been applied to peaceful speech having nothing to do with restricting access to the Clinic. The Injunction sends a chill up the spine when the speaker is confronted with the ominous words of the traffic sign: "WARNING. Demonstrations and picketing in this area are limited by court order. Violators of this court order are subject to arrest." J.A. 61.

2. The Injunction is vague.

An injunction is considered unconstitutionally vague if it "either forbids or requires the doing of an act in terms so vague that

²¹ See Argument I A, pp. 8-20. See also *United Food & Commercial Workers International Union v. IBP, Inc.*, 857 F.2d 422, 432 (8th Cir. 1988) (overturning ban on "persisting and talking to or communicating in any manner with" a person or persons "against his, her or their will").

[persons] of common intelligence must necessarily guess at its meaning and differ as to its application." *Connally v. General Construction Co.*, 269 U.S. 385, 391 (1926). The vagueness doctrine ensures that "all be informed as to what the state commands or forbids." *Lanzetta v. New Jersey*, 306 U.S. 451, 453 (1939). The prohibition against overly vague laws protects citizens from having to voluntarily curtail their first amendment activities because of fear that those activities could be characterized as illegal. See *Grayned*, 408 U.S. at 109. "Precision of regulation" is the touchstone of the first and fourteenth amendments.²²

Vague laws "may trap the innocent by not providing fair warning," "provide for arbitrary and discriminatory enforcement," impermissibly delegate policy matters to enforcement officials on an "ad hoc and subjective basis," and consequently chill free expression. *Id.* at 108-09; see also *Baggett v. Bullitt*, 377 U.S. 360, 374 (1964) ("Well-intentioned prosecutors and judicial safeguards do not neutralize the vice of a vague law"). This Court must apply strict scrutiny to the Injunction because its vagueness has an "inhibiting effect on speech." *Hynes v. Mayor & Council of Oradell*, 425 U.S. 610, 620 (1976); see also *Buckley v. Valeo*, 424 U.S. 1, 76-82 (1976); *Smith v. California*, 361 U.S. 147, 151 (1959). The following terms and sections are void for vagueness: "acting in concert," "agents," "during surgical procedures and recovery periods," "sounds or images observable to or within earshot of the patients" in Section (4); "physically approaching any person seeking the services of the Clinic," "a desire to communicate," "conversation of a non-threatening nature," and "sidewalk counseling" in Section (5); "congregating" and "patrolling" in Section (6); "intimidating" and "crowding" in Sections (7) and (8); "encouraging" in Section (9); and, the extent

²² *Button*, 371 U.S. at 435. Vague laws violate both free speech and due process. Cf. *Grayned*, 408 U.S. at 108-09 (noise ordinance); *Papachristou v. City of Jacksonville*, 405 U.S. 156 (1972) (loitering law); and *Coates v. City of Cincinnati*, 402 U.S. 611 (1971) (ordinance prohibiting three or more persons from assembling in an annoying manner void for vagueness).

of the prohibition outlined in the decretal portion regarding "invited contact."

The term **acting in concert** has proven problematic for law enforcement officials. Indeed, "the local police understood the Injunction to require them to arrest 'pro-life' individuals who violated the buffer zone." *Cheffer*, 6 F.3d at 707. The City of Melbourne attempted to intervene and to "clarify" the Injunction, stating that the City had arrested persons for merely entering the "buffer zone" and requested guidance "as to whether the City is required to make further determination concerning whether persons are 'acting in concert or participation' with" those named in the Injunction. J.A. 84. The City then requested the court "to advise how such determination is to be made." J.A. 84. Judge McGregor intended the term "in concert" to apply to "those who had taken a certain position in respect to the Clinic," and that it "did not pertain to those on the other side of the issue," but in fact only applied to those who were pro-life. J.A. 71. Like the loitering ordinance at issue in *Shuttlesworth v. City of Birmingham*, 382 U.S. 87 (1965) (*Shuttlesworth I*), the vagueness present in the instant Injunction allows pro-life speakers to stand on the sidewalk "only at the whim of any police officer." *Id.* at 91. Indeed, the record in the lower court indicates that those arrested for violating the Injunction were identified to law enforcement officials by Clinic employees and staff members. J.A. 75-76.

The Injunction restricts free expression around **agents** of the Clinic, yet there is no definition of "agent."²³ To determine who is an agent of the Clinic is important, because failure to recognize such an agent could result in immediate arrest for failure to obtain permission to speak.

²³ An agency relationship "results from the manifestation of consent by one person to another that the other shall act on his behalf." Restatement (Second) of Agency § 1(1) (1984). An agency relationship can result when one asks a friend to do something and can include attorneys, brokers, auctioneers, or other similarly employed people whether employees or independent contractors. *Id.* at comments (1)(b) and (e).

Section (3) commands that crossing Dixie Way must be **prompt**. Is promptness judged by the age, disability or number of persons crossing? Are weather conditions taken in consideration, and is the determination of prompt made by the subjective observer?

Section (4) provides that **during surgical procedures and recovery periods** all pro-life persons are forbidden to sing, chant, or whistle. The term "during surgical procedures and recovery periods" is in addition to the stated time of 7:30 a.m. to noon. Those who sought the Injunction interpret the phrase to be in addition to the stated time restrictions as evidenced by a letter of April 15, 1993, requesting that the Injunction be modified by including "(as posted at the Clinic)." J.A. 79. This phrase is vague because how is one to know the times of surgical procedures and recovery periods?

The phrase **sounds or images observable to or within earshot of the patients inside the Clinic** is likewise vague. Unlike the noise ordinance at issue in *Grayned*, 408 U.S. at 106, which prohibited willful noise or diversion that intended to disturb the peace and good order of the school while in session, the prohibition on "sounds" in the Injunction contains no willful modifier and restricts sound that clearly would not disturb the activity of the clinic.²⁴ This requirement extends beyond the no speech zone and depends upon the subjective hearing or seeing of someone within the Clinic. Bumper stickers and lapel buttons are swept within this restriction. See *Burson*, 112 S.Ct. at 1862 (Stevens, J., dissenting).

Is the Injunction violated if an image could be, but is not actually, seen? Is the Injunction violated if a sound could be, but is not actually, within earshot? Is enforcement of the Injunction dependent upon the unique perceptive and sensory characteristics of

²⁴ The noise ordinance in *Grayned* prohibited noises during class time but not before or after school. However, the noise prohibition in the Injunction applies from Monday through Saturday 7:30 a.m. to noon, and "during surgical procedures and recovery periods," resulting in movable and undefined time zones.

each individual patient? The term "earshot" is unscientific and will vary from one person to the next. Indeed, one person could claim that she heard a pro-life statement when someone else may argue that the noise was not audible. What if the clinic windows are open? Or shut? The term "earshot" is not an objective standard.

Section (5) requires prior consent before a pro-life person may **approach** any person **seeking the services of the Clinic**. Within three-hundred feet of the Clinic, a pro-life person may not distribute literature or even speak with any individual unless such person **indicates a desire to communicate**. The Injunction fails to provide an objective standard to determine if an individual three-hundred feet away from the Clinic is "seeking the services of the Clinic." Unless all persons "seeking the services of the Clinic" wear an identification badge, the pro-life speaker must guess and run the risk of incarceration if she chooses to even "approach" anyone with a pro-life message. This Court struck down as vague an ordinance restricting speech if it was annoying to those passing by. *Coates*, 402 U.S. at 612-14. Like the vague ordinance in *Coates*, the Injunction is void for vagueness because it requires parties and non-parties to subject the right of free expression and assembly "to an unascertainable standard." *Id.* at 614.

Once consent to speak is granted, pro-life speech is restricted to **conversation of a non-threatening nature**. What type of conversation is considered "non-threatening?" Who determines whether a conversation is considered "non-threatening?" The Injunction is silent on this point and leaves the pro-life speaker in a position of guessing if conversation has become threatening. The Injunction provides the person "seeking the services of the Clinic" a license to squelch speech if that person is offended. The term "non-threatening" is no less vague than the term "annoying," *Coates*, 402 U.S. at 612-14, "treats contemptuously," *Smith v. Goguen*, 415 U.S. 566 (1974), or "abusive language." *Gooding v. Wilson*, 405 U.S. 518 (1972).

The Injunction specifically restricts conversation known as **sidewalk counseling** without defining that phrase. Does the

Injunction ban all pro-life handbilling within the three-hundred foot zone? May a pro-life person pray with or discuss marital problems? May a pro-life person discuss adoption? To subject legitimate free speech rights to criminal penalty based upon a vague Injunction is reprehensible. Subjective enforcement of the Injunction by those responsible for enforcement renders the Injunction vague and unconstitutional.

Section (6) likewise prohibits **approaching** and further prohibits **congregating** and **patrolling**. The Injunction never defines these terms, and as this Court has recognized, picketing has many aspects. *See Thornhill*, 310 U.S. at 100-01 & n.18. Like the bubble zone statute ruled unconstitutional in Arizona, the Injunction does not arm the pro-life speaker "with constitutional certainty when speech will be deemed criminal." *Sabelko v. City of Phoenix*, No. 93-2229, slip op. at 25 (D.AZ Feb. 11, 1994).²⁵ Section (6) requires the pro-life speaker to determine, and then avoid approaching, the "residences" of those persons associated with the Clinic, while imposing arrest and incarceration for an incorrect guess. Is the three-hundred foot measurement from the physical home, or does the three-hundred foot radius extend from the edge of the property line? On any given day some pro-life person is in violation of the Injunction.

Certainly, with the many possible "agents" of the Clinic scattered about the area, some pro-life person is "approaching" within three-hundred feet of an agent's "residence." When a pro-life person seeks to relocate, she must first determine if any of the Clinic's "agents" live in the area. If so, the pro-life person is banned from moving into the neighborhood because that would be "approaching" the residence. An agent of the Clinic living in an apartment complex could silence any and all pro-life people living

²⁵ The Phoenix ordinance declared that "demonstration activity" included "protesting," "picketing," and "oral protest," and was found to be vague since "the resolution of such questions will turn on the subjective and ad hoc determinations of police, judges, and juries." *Sabelko*, No. 93-2229 at 2-3.

in the complex. All those who hold a pro-life belief must immediately move or be arrested for "approaching" the residence of one of the Clinic's agents. Such a ludicrous result underscores the vagueness problem.

Section (6) further states that a pro-life speaker is forbidden from "attempting to impede, temporarily *or otherwise*, the free ingress or egress of persons to any street that provides the sole access to the street on which those residences are located." (emphasis supplied). How could a pro-life speaker possibly comply with language which criminalizes "attempting" to block any person, not just the Clinic's "employees, staff, owners or agents," from entering a street? An incorrect guess will subject a pro-life person to arrest and incarceration.

Sections (7) and (8) prohibit **intimidating** and **crowding**, but since any offensive speech could be construed as intimidating, inviting dispute, and even stirring people to anger,²⁶ anyone could claim intimidation and thus raise the specter of the Injunction. Indeed, "if it is the speaker's opinion that gives offense, that consequence is a reason for according it constitutional protection." *FCC v. Pacifica Foundation*, 438 U.S. 726, 745 (1978).

Section (9) suffers from vagueness because it prohibits mere **encouragement**. However, if the first amendment means anything, it means "free trade and the opportunity to persuade, not merely to describe facts." *Thomas v. Collins*, 323 U.S. 516, 537 (1945). Finally, the decretal portion speaks about **invited contact** and actually extends beyond the thirty-six foot and three-hundred foot no speech zones. This so-called "invited contact"

may be canceled by such person by words spoken that indicate a desire to end the contact, such as "stop," "withdraw," "back off," "get away," "leave me alone" or

²⁶ See *Johnson*, 491 U.S. at 408-09; *Terminiello v. Chicago*, 337 U.S. 1, 4 (1949).

words or actions of similar import. Where such desire to end the contact is made known to a [pro-life person], he/she must immediately terminate the contact and leave the presence of the person protected hereby.

J.A. 63.

A Phoenix bubble zone ordinance restricting pro-life speech suffered from the same fate as does the Injunction. Singling out pro-life speech to be unlawful after failing "to withdraw upon a clearly communicated request to do so," the federal district court ruled such language void for vagueness. *Sabelko*, No. 93-2229 at 26. Indeed, "what constitutes a clearly communicated request to withdraw?" *Id.* at 25. Does the phrase "I do not wish to hear from you" suffice when more realistically "the communication might be 'get lost' or 'buzz off'. What about 'shut up!'" A grunt? A push? A roll of the eyes with a mumbled swear word?" *Id.* at 25-26. "Judges and juries could easily differ on whether 'shut up' or similar communication clearly communicated a request to withdraw." *Id.* at 26.

The vagueness of the Injunction results in broad prophylactic rules and therefore is constitutionally deficient. See *Button*, 371 U.S. at 340. The Injunction requires Petitioners and those "acting in concert" to "steer far wider of the unlawful zone." *Speiser v. Randall*, 357 U.S. 513, 526 (1958). The threat of sanctions as a result of the vagueness clearly chills free expression. Rather than providing "breathing space," the Injunction suffocates speech. *Button*, 371 U.S. at 433. Faced with such vague language, rather than restrict the Injunction, the state courts expanded the Injunction, and in these circumstances, there is no reason to assume that the Injunction can or will be decisively narrowed. *Erznoznik*, 422 U.S. at 216. On its face and as applied, the Injunction is void for vagueness.

D. The Injunction Creates An Unlawful Prior Restraint.

"Temporary restraining orders and permanent injunctions--i.e.,

court orders that actually forbid speech activities--are classic examples of prior restraints." *Alexander v. United States*, 113 S.Ct. 2766, 2771 (1993). Historically, the term "prior restraint is used 'to describe administrative and judicial orders forbidding certain communications when issued in advance of the time that such communications are to occur.'" *Id.* Any prior restraint bears a "heavy presumption" against its constitutional validity. *See Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 70 (1963). The state must meet a "heavy burden" to impose a prior restraint on speech. *See Nebraska Press Association v. Stuart*, 427 U.S. 539 (1976); *New York Times Co.*, 403 U.S. 713; *Vance v. Universal Amusement Co., Inc.*, 445 U.S. 308, 315-16 (1980). The presumption against prior restraints is heavier, and the degree of protection broader, than that against limits on expression imposed by criminal statutes. Society "prefers to punish the few who abuse rights of speech *after* they break the law than to throttle them and all others beforehand." *Conrad*, 420 U.S. at 559-60 (emphasis in original).

"In determining the extent of the constitutional protection, it has been generally, if not universally, considered that it is the chief purpose of the (first amendment) to prevent previous restraints upon publication." *Near v. Minnesota*, 283 U.S. 697, 713 (1931). In *Lovell*, this Court reaffirmed that "the prevention of [prior restraints] was a leading purpose in the adoption of the [first amendment]." 303 U.S. at 451.

"Prior restraint upon speech suppresses the precise freedom which the First Amendment sought to protect against abridgement." *Carroll*, 393 U.S. at 181. "The teaching of our cases is that, because only a judicial determination in an adversary proceeding insures the necessary sensitivity to freedom of expression, only a procedure requiring a judicial determination suffices to impose a valid final restraint." *Freedman v. Maryland*, 380 U.S. 51, 58 (1965); *see also Vance*, 445 U.S. at 308.

Section (3) creates a flat ban on all pro-life speech within the thirty-six foot zone. Section (4) bans sounds and images. Section (5) requires consent to speak or distribute literature. Section (6)

restrains pro-life persons from "approaching" an agent's residence. Section (9) restricts persons from "encouraging" others to act in violation of the Injunction. The decretal section prohibits all "uninvited contact."

Section (3) creates a flat ban on pro-life speech on the public sidewalk and the highway known as Dixie Way. Thus, speech is completely prohibited on the *only* public sidewalk in the vicinity. On April 10, 1993, approximately fifty persons were arrested for merely "walking" into the thirty-six foot zone. At the April 12th hearing Judge McGregor stated "there is nothing in the Constitution that says anyone is entitled to walk on any sidewalk." J.A. 68.²⁷ "The local police understood the Injunction to require them to arrest 'pro-life' individuals" who merely entered the thirty-six foot zone. *Cheffer*, 6 F.3d at 707. The Injunction "readily lends itself to harsh and discriminatory enforcement by local prosecuting officials, against particular groups deemed to merit their displeasure, [and] results in a continuous and pervasive restraint on all freedom of discussion that might reasonably be regarded as within its purview." *Thornhill*, 310 U.S. at 97-98.

In *Carroll*, this Court recognized a due process violation where an injunction was granted *ex parte*, without notice to petitioners and without any effort, however informal, to invite or permit their participation in the proceedings." 393 U.S. at 180. "[T]here is no place within the area of basic freedoms guaranteed by the first amendment for [*ex parte*] orders where no showing is made that it is impossible to serve or to notify the opposing parties and to give them an opportunity to participate." *Id.* The Injunction is clearly not limited to parties before the court, but operates against all those "in concert." "Judge McGregor's Amended Permanent Injunction, by operating on persons not before this court, serves as a statute of local effect regulating picketing by anti-abortion speakers." *Cheffer*,

²⁷ In addition, the Injunction bans all "sounds or images observable to or within earshot of the patients inside the Clinic." Therefore, the Injunction is not limited to the thirty-six foot zone but bans all pro-life expression anywhere near the Clinic which might be heard or seen inside.

6 F.3d at 710. None of those arrested on April 10th were parties to the proceedings, but were alleged to be acting "in concert" with those named in the Injunction. As such, the Injunction operates as an *ex parte* prior restraint on free speech.

Section (4) restricts sounds or images during surgical procedures and recovery periods. The pro-life speaker must always restrain herself from displaying an image because of the uncertainty when surgical procedures or recovery periods occur. Though this section may not be a total ban, the uncertainty operates as a total ban. "A licensing system need not affect total suppression in order to create a prior restraint." *Conrad*, 420 U.S. at 556 n.8.

Section (5) restrains speech directed toward a person seeking the services of the Clinic unless the person indicates a desire to communicate. Once speech is initiated, the pro-life speaker must always be on guard so as not to speak in a non-threatening manner. Section (6) operates as a total ban on residential picketing. Sections (7) and (8) require that speech not be intimidating. Section (9) prohibits encouraging speech. The decretal portion of the Injunction restrains speech unless "invited" as indicated by the extending of a hand to receive literature or speaking words indicating a positive interest in the subject matter. The same section also allows one associated with the Clinic to *ex parte* prohibit speech by using such words as "stop," "withdraw," "back off," "get away," "leave me alone," or words or actions of similar import. In other words, the court has empowered private citizens with injunctive authority to permanently restrain speech. For example, if a person were standing 299 feet from the Clinic discussing pro-life matters with a crowd of twenty people, and from among that crowd a person associated with the Clinic yelled "Shut up," then the pro-life speaker must end the speech or face prosecution. The threat of prosecution alone acts as a severe prior restraint. *Thornhill*, 310 U.S. at 97-98.

In *Organization For A Better Austin v. Keefe*, 402 U.S. 415, 417 (1971), this Court struck down as a prior restraint an injunction prohibiting picketing and, the "distribution of pamphlets, leaflets or literature of any kind." In *Keefe*, the injunction banned the peaceful

distribution of leaflets criticizing racial inequities in real estate transactions. Individuals distributed leaflets near the targeted business and near the home of the offending real estate agent. This Court stated that "peaceful pamphleteering is a form of communication protected by the First Amendment." *Id.* at 419; *see also Grace*, 461 U.S. at 178.

The protection against prior restraints necessarily embraces the distribution of pamphlets and leaflets, which "indeed have been historic weapons in the defense of liberty." *Lovell*, 303 U.S. at 452. "Freedom to distribute literature to every citizen wherever he desires to receive it is so clearly vital to the preservation of a free society that . . . it must be fully preserved." *Martin*, 319 U.S. at 146-47. Reaffirming that all persons have a right to receive information without prior restraint, this Court stated that "pamphlets have proven most effective instruments in the dissemination of opinion." *Id.* at 145 (quoting *Schneider*, 308 U.S. at 164).

The Injunction gives all persons "seeking the services of the Clinic" the authority to ban all pro-life speech and literature distribution within three-hundred feet of the Clinic. By requiring prior consent, the Injunction creates a prior restraint.

Possibly the most outrageous prior restraint within the Injunction is contained in the decretal section which states in relevant part:

at all times on all days, [pro-life persons] will have the right of invited contact with persons protected hereby so long as it is outside of the Clinic buffer zone Any invited contact may be canceled by such person by words spoken that indicate a desire to end the contact, such as "stop," "withdraw," "back off," "get away," "leave me alone" or words or actions of similar import. Where such desire to end the contact is made known to a [pro-life person], he/she must immediately terminate the contact and leave the presence of the person protected hereby.

J.A. 63. This section of the Injunction is not limited to any specific location, and purports to be applied *anywhere*. The Injunction grants unfettered discretion to silence pro-life speech which is not "invited." Not only does the Injunction provide a license to silence speech, but it requires that the person, once uninvited, "leave the presence of the person protected hereby."

"[T]he fact that society may find speech offensive is not a sufficient reason for suppressing it. Indeed, if it is the speaker's opinion that gives offense, that consequence is a reason for according it constitutional protection." *Hustler Magazine, Inc. v. Falwell*, 485 U.S. 46, 55 (1988) (quoting *Pacifica Foundation*, 438 U.S. at 745). On its face, the Injunction provides a license to silence objectionable speech. "If there is a bedrock principle underlying the First Amendment, it is that the Government may not prohibit the expression of an idea simply because society finds the idea itself offensive or disagreeable." *Johnson*, 491 U.S. at 414.

Vesting the right to suppress free speech in the discretion of private citizens creates a substantial risk of the suppression of ideas. See *Thornhill*, 310 U.S. at 88. In *Forsyth County*, this Court found that a parade permit ordinance vested excessive discretionary power in administrative officials. 112 S.Ct. at 2395; see also *Lakewood*, 486 U.S. at 750. The "invited contact" provision clearly creates a discretionary license to suppress speech. Discretionary licenses to suppress speech violate the core of the first amendment.

"It is not merely the sporadic abuse of power by the censor but the pervasive threat inherent in its very existence that constitutes the danger to freedom of discussion." *Thornhill*, 310 U.S. at 97. "[T]he success of a facial challenge on the grounds that an [Injunction] delegates overly broad discretion to the decisionmaker rests not on whether the [decisionmaker] has exercised . . . discretion in a content-based manner, but whether there is anything . . . preventing him from doing so." *Forsyth County*, 112 S.Ct. at 2403 n.10. Such "'discretion has the potential for becoming a means of suppressing a particular point of view.'" *Id.* at 2401 (quoting *Heffron*, 452 U.S. at 649).

The Florida Supreme Court erred in holding that prior restraints only apply to content-based regulations. Pet. App. A-19 and 20. State regulations need not restrict the content of speech in order to qualify as a prior restraint. Without having to reach the issue of content, this Court found a prior restraint in a regulation prohibiting the distribution of *any* kind of literature. See *Keefe*, 402 U.S. at 181. The injunction in *Carroll* was content neutral but was analyzed by this Court as a prior restraint. See *Carroll*, 393 U.S. at 181. This Court has traditionally condemned licensing schemes as prior restraints without regard to content restrictions. See *Forsyth County*, 112 S.Ct. at 2395 (parade permits); *Shuttlesworth v. City of Birmingham*, 394 U.S. 147 (1969) (*Shuttlesworth II*) (public demonstration permits); *Lovell*, 303 U.S. at 444 (literature distribution permit). The Florida Supreme Court's holding is in direct conflict with the precedent of this Court.

The Injunction totally excludes peaceful pro-life handbilling within the thirty-six foot zone and creates a prior consent requirement outside the thirty-six foot zone. Like the statute at issue in *Thornhill*, the state courts below have interpreted the Injunction "so as to prohibit a single individual from walking slowly and peacefully back and forth on the public sidewalk in front of the [Clinic] without speaking to anyone, carrying a sign or placard [but] stating only the fact that [she is pro-life]." 310 U.S. at 98-99; see J.A. 68, 71. Such an outright ban on free speech is reprehensible and unconstitutional.

The 1992 permanent injunction adequately protects the Clinic, the patients, and the public without infringing on free expression. The 1993 Injunction violates the first amendment and this Court should find it unconstitutional. Striking the 1993 Injunction does not affect the 1992 permanent injunction, which is not challenged here, and therefore the Clinic's interests would still be protected and the right to free speech would not be violated.

II.

THE INJUNCTION VIOLATES PETITIONERS' RIGHT TO FREE ASSOCIATION.

A. The Injunction Penalizes all Persons Having A Pro-Life Viewpoint.

Like the freedom of speech, the right to free association is a fundamental right protected by the first amendment.²⁸ It is beyond dispute that the first amendment "protects political association as well as political expression." *Buckley v. Valeo*, 424 U.S. 1, 15 (1976). To limit "the right of association places an impermissible restraint on the right of expression." *Citizens Against Rent Control*, 454 U.S. at 300.

The right to free association "applies to the beliefs we share," and though government "may not tell a man or woman who his or her associates must be," the Injunction does just that. *Gilmore v. City of Montgomery*, 417 U.S. 566, 575 (1974); *see also NAACP v. Button*, 371 U.S. 415, 444-45 (1963). The Injunction penalizes anyone with a pro-life viewpoint on two fronts. First, Petitioners Madsen, Martin, and Hobbs are lumped in with other alleged actors and certain named, yet nondescript organizations,²⁹ solely because they hold a pro-life belief. The Injunction cites a parade of horrors allegedly performed by unknown actors, Bruce Cadle, and a group called Operation Rescue. The only affiliation Petitioners share is their pro-life belief. Respondents specifically stipulated on

²⁸ *See, e.g., Roberts v. United States Jaycees*, 468 U.S. 609, 622 (1984); *Citizens Against Rent Control v. Berkeley*, 454 U.S. 290, 300 (1981); *Healy v. James*, 408 U.S. 169, 181 (1972); *Brandenburg v. Ohio*, 395 U.S. 444, 449 n.4 (1969); *Bates v. City of Little Rock*, 361 U.S. 516, 522 (1960); *Thomas v. Collins*, 323 U.S. 516, 530 (1945); *De Jonge v. Oregon*, 299 U.S. 353, 364 (1937).

²⁹ The trial court was confused as to the identities of the organizations. J.A. 378-385.

July 30, 1992, that "Ed Martin, Judy Madsen and Shirley Hobbs have not actually, physically blocked access to the abortion clinics located in Brevard or Seminole County."³⁰ Though it is a stipulated fact that Petitioners never blocked access to the Clinic, and there is no evidence that they orchestrated others to do so, and further that there is no evidence that they are associated with Bruce Cadle or Operation Rescue, they have had their free speech and association rights stripped from them.

Second, the Injunction violates freedom of association through the term "in concert." As noted in other parts of this brief, the term "in concert" was intended to sweep within its ambit everyone who has a pro-life viewpoint. The Injunction simply "did not pertain to those on the other side of the issue" but instead applies to only to those who "seem to be supportive of pro-life." J.A. 72.

Membership, holding beliefs shared by a violent or illegal group, the mere advocacy or moral necessity for resort to force or violence without preparing a group for violent action, or undifferentiated fear is not sufficient to throttle speech and association.³¹ The record reveals no evidence of violent activity. Though some might be discomforted by pro-life speech, such

³⁰ Counsel for the Clinic frequently told the trial court that the purpose of the hearing to amend the 1992 permanent injunction had nothing to do with Petitioners Madsen, Martin, and Hobbs. J.A. 307, 331, 343, 348, 372, 374, and 375 ("I've already said that Judy Madsen is not a target of these contempt proceedings").

³¹ *See Healy*, 408 U.S. at 185; *Brandenburg*, 395 U.S. at 448-49; *Tinker v. Des Moines Independent Community School District*, 393 U.S. 503 (1969); *United Mine Workers of America v. Gibbs*, 383 U.S. 715 (1966); *Noto v. United States*, 367 U.S. 290 (1961); *Scales v. United States*, 367 U.S. 203, 225, 229 (1961); *Yates v. United States*, 354 U.S. 298 (1957); *Whitney v. California*, 274 U.S. 357, 376 (1927).

discomfort, is not sufficient to sustain the Injunction.³²

The government has the burden of proving Petitioners knowing affiliation with a group possessing unlawful aims and goals, and a specific intent to further those illegal aims. The evidence below does not support this burden. See *Healy*, 408 U.S. at 186. Rather, Petitioners and those "in concert" are assumed guilty by association. See *United States v. Robel*, 389 U.S. 258 (1967). However, "peaceful assembly for lawful discussion cannot be made a crime." *De Jonge*, 299 U.S. at 365.

In *Healy* a student organization was denied official campus recognition because of a possible affiliation with the National Students for a Democratic Society. This national organization advocated violence, and violent activity had followed them on other university campuses. This Court found the university's action unconstitutional, noting that the government "may not restrict speech or association simply because it finds the views expressed by any group to be abhorrent," nor may the state restrict association because of undifferentiated fear or apprehension of disturbance. *Healy*, 408 U.S. at 188, 191.³³ Free association may not be

³² This Court upheld an injunction arising out of a labor dispute in *Milk Wagon Drivers Union of Chicago, Local 753 v. Meadowmoor Dairies*, 312 U.S. 287 (1941). However, *Milk Wagon* clearly involved extreme and repeated acts of violence including a pattern of violence "which would inevitably reappear in the event picketing were later resumed." *Youngdahl v. Rainfair, Inc.*, 355 U.S. 131, 139 (1957). Moreover, *Milk Wagon* is specifically limited to its facts. 312 U.S. at 298-99; *Gibbs*, 383 U.S. at 731-32. Finally, *Milk Wagon* acknowledged that the injunction was for a temporary period lasting only as long as the extreme violence.

³³ Justice Black was right on point when he stated, "I do not believe that it can be too often repeated that the freedoms of speech, press, petition, and assembly guaranteed by the First Amendment must be accorded to the ideas we hate or sooner or later they will be denied the ideas we cherish." *Communist Party v. Subversive Activities Control Board*, 367 U.S. 1, 137 (1961) (Black, J., dissenting).

denied "merely because an individual belongs to a group, some members of which committed acts of violence." *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886, 920 (1982). The trial court and the Florida Supreme Court ignored this Court's admonition that there must be an "evidentiary basis for concluding that specific parties agreed to use unlawful means, that carefully identify the impact of such unlawful conduct, and that recognize the importance of avoiding the imposition of punishment for constitutionally protected activity." *Id.* at 933. Expression regarding issues of public concern "has always rested on the highest rung of the hierarchy of First Amendment values." *Id.* at 913 (quoting *Carey v. Brown*, 447 U.S. 455, 467 (1980)). However, "the Injunction appears to 'criminalize' various acts of peaceful protest, including the mere penetration of the buffer zone." *Cheffer v. McGregor*, 6 F.3d 705, 707 (11th Cir. 1993).³⁴ As such, the Injunction penalizes anyone with a pro-life viewpoint. This Court has recognized that

if the rights of free speech and peaceable assembly are to be preserved [the question is] not as to the relations of the speakers, but whether their utterances transcend the bounds of the freedom of speech which the Constitution protects. If the persons assembling have committed crimes elsewhere, if they have formed or engaged in a conspiracy against the public peace and order, they may be prosecuted for the conspiracy or other violation of valid laws. But it is a different matter when the State, instead of prosecuting them for such offenses, seizes upon mere participation in a peaceable assembly and a lawful public discussion as the basis for a criminal charge.

De Jonge, 299 U.S. at 365.

³⁴ The *Cheffer* court assumed Judge McGregor had the authority to craft a civil injunction with criminal penalties. 6 F.3d at 708, n.4. Under Florida law he had such authority to enforce a civil injunction with criminal contempt. See Fla. Stat. § 60.06; *Demetree v. State*, 89 So. 2d 498 (Fla. 1956).

B. The Injunction Eradicates Group Advocacy.

The Florida Supreme Court made the same fatal mistake as the trial court entering the Injunction--lumping Petitioners together with other named and unnamed individuals, and because of the alleged actions of these other individuals, restricting Petitioners' right to speech and association solely because all share a pro-life view. On its face, and as applied, the Injunction lumps together any individual with a pro-life views through the term "in concert." Since the "practice of persons sharing common views banding together to achieve a common end is deeply embedded in the American political process," any restriction on group advocacy should meet with strict scrutiny. *Citizens Against Rent Control*, 454 U.S. at 294. Though there is no evidence that Petitioner Madsen ever visited the Clinic, evidence that Petitioner Martin had not been there in two to two and a half years,³⁵ and no evidence that Petitioner Hobbs was disruptive, Petitioners' right to associate with other pro-life individuals has been flatly prohibited. Moreover, anyone who associates with Petitioners will be construed as acting "in concert" with them, and Petitioners have therefore lost their right to associate with others. The Injunction consequently isolates Petitioners and imposes liability on them even though there is no evidence they incited or produced any imminent lawless action. See *Brandenburg*, 395 U.S. at 447.

The right to free speech protects the marketplace for "the clash of different views and conflicting ideas," and oftentimes this "clash" can only be achieved when individuals collectively combine to make known their views because individually their "voices would be faint or lost." *Citizens for Rent Control*, 454 U.S. at 294-95. While there may be some activities "legal if engaged in by one, yet illegal if performed in concert with others, . . . political expression is not one of them." *Id.* at 296. The reason the first amendment protects free association is because effective advocacy, particularly on

³⁵ Dr. Snyder testified that he saw Martin at the Clinic. J.A. 193, 211. Martin and Cadle both testified that Martin had not been at the Clinic in more than two years. J.A. 378, 427.

"controversial" issues, is "undeniably enhanced by group association." *NAACP v. Alabama ex rel Patterson*, 357 U.S. 449, 460 (1958).

This Court has stated that "[t]he right to associate does not lose all constitutional protection merely because some members of the group may have participated in conduct or advocated doctrine that itself is not protected." *Claiborne Hardware*, 458 U.S. at 908. This Court has also stated that a "blanket prohibition of association with a group having both legal and illegal aims" would present "a real danger that legitimate political expression or association would be impaired." *Scales*, 367 U.S. at 229.

Respondents assert that Petitioners' speech should not be protected because it creates "fear and intimidation" among Clinic patients and personnel. However, the first amendment clearly protects group association to protest practices that segments of the public find reprehensible. See *Thornhill*, 310 U.S. at 99 (picketing intended to "induce the customers not to patronize the employer"). Moreover, as this Court noted in *Claiborne Hardware*, "[s]peech does not lose its protected character . . . simply because it may embarrass others or coerce them into action." 458 U.S. at 910.

Denying Petitioners the right to freely associate and express their views simply because of their commonly held pro-life belief eviscerates their First Amendment rights. Limiting Petitioners' right to free speech and association merely by virtue of shared beliefs abolishes the very core of first amendment protections. It is impermissible to impute the misconduct of some to Petitioners and others of similar belief.

The 1992 permanent injunction appropriately protects the Clinic, the patients, and the public without violating the right to free association. The 1993 Injunction violates free association and therefore should be stricken as unconstitutional. Finding the 1993 Injunction violative of the first amendment stills leaves in effect the 1992 permanent injunction which appropriately protects the Clinic without infringing on free association.

CONCLUSION

In light of the above, this Court should reverse the judgment of the Florida Supreme Court.

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